

AMENDED IN ASSEMBLY JUNE 29, 2024

AMENDED IN ASSEMBLY JUNE 22, 2023

AMENDED IN SENATE MAY 18, 2023

AMENDED IN SENATE APRIL 19, 2023

SENATE BILL

No. 867

Introduced by Senators Allen, Becker, Gonzalez, Limón, Portantino, and Stern and Assembly Members Garcia and Wilson
(Principal coauthor: Senator Dodd) coauthors: Senators Ashby, Atkins, Caballero, Cortese, Dodd, Durazo, Hurtado, Laird, Min, Padilla, Roth, Rubio, Umberg, and Wahab)
(Principal coauthors: Assembly Members Addis, Bennett, Bryan, Connolly, Hart, Papan, Soria, and Zbur)

February 17, 2023

An act to add Division 50 (commencing with Section 90000) to the Public Resources Code, relating to ~~drought, flood, and water resilience; wildfire and forest resilience; coastal resilience; extreme heat mitigation; biodiversity and nature-based climate solutions; climate smart agriculture; park creation and outdoor access; and clean energy programs; safe drinking water; wildfire prevention; drought preparedness; and clean air~~, by providing the funds necessary therefor through an election of the issuance and sale of bonds of the State of California and for the handling and disposition of those ~~funds~~; *funds, and declaring the urgency thereof, to take effect immediately.*

LEGISLATIVE COUNSEL'S DIGEST

SB 867, as amended, Allen. ~~Drought, Flood, and Water Resilience; Wildfire and Forest Resilience; Coastal Resilience; Extreme Heat Mitigation; Biodiversity and Nature-Based Climate Solutions; Climate~~

~~Smart Agriculture, Park Creation and Outdoor Access, and Clean Energy Safe Drinking Water, Wildfire Prevention, Drought Preparedness, and Clean Air Bond Act of 2024.~~

The California Drought, Water, Parks, Climate, Coastal Protection, and Outdoor Access For All Act of 2018, approved by the voters as Proposition 68 at the June 5, 2018, statewide primary election, authorizes the issuance of bonds in the amount of \$4,100,000,000 pursuant to the State General Obligation Bond Law to finance a drought, water, parks, climate, coastal protection, and outdoor access for all program. Article XVI of the California Constitution requires measures authorizing general obligation bonds to specify the single object or work to be funded by the bonds and further requires a bond act to be approved by a $\frac{2}{3}$ vote of each house of the Legislature and a majority of the voters.

This bill would enact the ~~Drought, Flood, and Water Resilience, Wildfire and Forest Resilience, Coastal Resilience, Extreme Heat Mitigation, Biodiversity and Nature-Based Climate Solutions, Climate Smart Agriculture, Park Creation and Outdoor Access, and Clean Energy Safe Drinking Water, Wildfire Prevention, Drought Preparedness, and Clean Air Bond Act of 2024~~, which, if approved by the voters, would authorize the issuance of bonds in the amount of ~~\$15,500,000,000~~ \$10,000,000,000 pursuant to the State General Obligation Bond Law to finance projects for *safe drinking water*, drought, flood, and water resilience, wildfire and forest resilience, coastal resilience, extreme heat mitigation, biodiversity and nature-based climate solutions, ~~climate smart agriculture~~, *climate-smart, sustainable, and resilient farms, ranches, and working lands*, park creation and outdoor access, and clean energy air programs.

~~This bill would provide for the submission of these provisions to the voters at the March 5, 2024, statewide primary election.~~

~~This bill would become operative only if SB 638 of the 2023–24 Regular Session is enacted and takes effect on or before January 1, 2024.~~

This bill would declare that it is to take effect immediately as an urgency statute.

Vote: $\frac{2}{3}$. Appropriation: no. Fiscal committee: yes.
State-mandated local program: no.

The people of the State of California do enact as follows:

SECTION 1. The people of California find and declare all of the following:

(a) *Every human being has the right to safe, clean, affordable drinking water. California was the first state in the nation to legally declare this right.*

(b) *More than 60 percent of California's rivers and streams fail to meet federal clean water standards, and more than 1,000,000 Californians still lack easy access to safe, affordable, and clean drinking water. California must make needed investments to keep toxic pollution out of our water and ensure every person in the state has clean water to drink.*

(c) *In recent years, California has experienced the deadliest and most destructive wildfires on record. Fifteen of the 20 most destructive wildfires in state history have occurred in the last decade alone, including the deadliest, the 2018 Camp Fire. These wildfires have claimed more than 100 lives, tens of thousands of homes and structures lost, and more than 2,000,000 acres burned.*

(d) *California's changing climate creates increased risk of catastrophic wildfires, drought, severe heat events, and sea level rise, as well as impacts to agriculture, water supply and water quality, and the health of the forests, watershed, and wildlife.*

(e) *These risks and impacts vary by region and can overwhelm the resources of local governments that must cope with severe climate change-related events.*

(f) *Reducing vulnerability to fire, flood, drought, and other climate change-related events requires a statewide investment to increase climate resilience of communities and natural systems.*

(g) *Planning, investment, and action to address current and future climate change impacts must be guided by the best available science, including local and traditional knowledge.*

(h) *Governor Gavin Newsom has issued several reports and executive orders that have created a roadmap to climate resiliency in California that will help guide and direct investments.*

~~(e) The California's~~

(i) *California's Water Supply Strategy Adapting to a Hotter, Drier Future* outlines actions needed ~~to take~~ in order to recycle and reuse at least 800,000 acre-feet of water per year by 2030, make available up to 500,000 acre-feet of water through more efficient water use and conservation, and make new water available for use by capturing ~~storm water~~ *stormwater* and desalinating brackish water in groundwater basins.

~~(f)~~

(j) The Water Resilience Portfolio serves as a blueprint for equipping California to cope with more extreme droughts and floods and rising temperatures, while addressing longstanding challenges that include declining fish populations, over-reliance on groundwater and lack of safe drinking water in many communities.

~~(g) The California's~~

(k) *California's Wildfire and Forest Resilience Action Plan* outlines a strategy to increase the pace and scale of forest health projects, strengthen protection of communities, and manage forests, to achieve the state's economic and environmental goals and drive innovation and measure progress.

~~(h)~~

(l) The Extreme Heat Action Plan outlines a strategy to protect communities from rising temperatures in order to accelerate readiness and protection of communities most impacted by extreme heat, including through cooling schools and homes, supporting community resilience centers, and expanding nature-based solutions.

~~(i)~~

(m) California's strategy for achieving the first-in-the-nation 30x30 conservation goal is described in the *Pathways to 30x30: Accelerating Conservation of California's Nature* report, which outlines a vision to conserve an additional 6,000,000 acres of lands and 500,000 acres of coastal waters needed to reach ~~30 percent~~. *30-percent conservation goals by 2030.*

~~(j)~~

(n) Executive Order No. N-82-20 outlines a strategy to expand nature-based solutions across California. The executive order calls for restoring nature and landscape health to deliver on our climate change goals and other critical priorities, including improving

1 public health and safety, securing our food and water supplies, and
2 achieving greater equity across California.

3 *(o) California Salmon Strategy for a Hotter, Drier Future*
4 *outlines a path to a healthier, thriving salmon population in*
5 *California, actions state agencies are already taking to stabilize*
6 *and recover salmon populations, and additional or intensified*
7 *actions needed in coming years.*

8 ~~(k)~~

9 *(p) Governor Gavin Newsom signed Senate Bill 1 of the*
10 *2021–22 Regular Session (Chapter 236 of the Statutes of 2021)*
11 *that directed the California Coastal Commission to take sea level*
12 *rise into account in its planning, policies, and activities, and*
13 *established a cross-government group tasked with educating the*
14 *public and advising local, regional, and state government on*
15 *feasible sea level rise mitigation efforts.*

16 *(q) California’s Natural and Working Lands Climate Smart*
17 *Strategy showcases that sustainable agricultural practices have*
18 *important implications for equity and public health, and can*
19 *promote economic resilience, buffer communities from extreme*
20 *heat, improve air and water quality, and provide local food*
21 *sources. These outcomes benefit all Californians, and are*
22 *particularly important for rural, vulnerable communities.*

23 *(r) The 2022 Scoping Plan for Achieving Carbon Neutrality*
24 *focuses on the importance of investing in strategies for reducing*
25 *California’s dependency on petroleum, including transitioning to*
26 *clean energy options that address climate change, improve air*
27 *quality, and support economic growth and clean sector jobs.*

28 *(s) Without intervention, the cost of climate change to California*
29 *is estimated to reach \$113,000,000,000 annually by 2050,*
30 *according to the Natural Resources Agency’s California’s Fourth*
31 *Climate Change Assessment.*

32 *(t) The Federal Emergency Management Agency estimates that*
33 *every dollar spent on resiliency saves \$6 in disaster relief. A*
34 *\$10,000,000,000 investment could help avoid \$60,000,000,000 in*
35 *disaster relief.*

36 *(u) Providing a source of funding for comprehensive investment*
37 *in climate resilience in all regions of the state is cost effective and*
38 *in the public interest. These investments will result in public*
39 *benefits that will address the most critical statewide needs and*
40 *priorities for public funding.*

(v) *The Safe Drinking Water, Wildfire Prevention, Drought Preparedness, and Clean Air Bond Act of 2024 provides a comprehensive and fiscally responsible approach for addressing the varied challenges facing California’s current and future climate impacts.*

(w) *Investing in water infrastructure will provide jobs, improve resiliency, and reduce local government spending.*

(x) *Continued investments in California’s parks, trails, natural and working lands, and greening urban areas will help mitigate the impacts of climate change, making cities more livable, and will protect California’s natural resources for future generations.*

(y) *The expenditure of funds from the Safe Drinking Water, Wildfire Prevention, Drought Preparedness, and Clean Air Bond Act of 2024 will help communities avoid and recover from the impacts of wildfire, flood, drought, or other climate-related events, and help restore and protect natural systems from the impacts of wildfire, flooding, drought, or other climate-related events.*

SEC. 2. Division 50 (commencing with Section 90000) is added to the Public Resources Code, to read:

~~DIVISION 50. DROUGHT, FLOOD, AND WATER
RESILIENCE, WILDFIRE AND FOREST RESILIENCE,
COASTAL RESILIENCE, EXTREME HEAT MITIGATION,
BIODIVERSITY AND NATURE-BASED CLIMATE
SOLUTIONS, CLIMATE SMART AGRICULTURE, PARK
CREATION AND OUTDOOR ACCESS, AND CLEAN ENERGY
SAFE DRINKING WATER, WILDFIRE PREVENTION,
DROUGHT PREPAREDNESS, AND CLEAN AIR BOND ACT
OF 2024~~

CHAPTER 1. GENERAL PROVISIONS

90000. This division shall be known, and may be cited, as the ~~Drought, Flood, and Water Resilience, Wildfire and Forest Resilience, Coastal Resilience, Extreme Heat Mitigation, Biodiversity and Nature-Based Climate Solutions, Climate Smart Agriculture, Park Creation and Outdoor Access, and Clean Energy~~ *Safe Drinking Water, Wildfire Prevention, Drought Preparedness, and Clean Air Bond Act of 2024.*

1 90050. (a) In expending funds pursuant to this division, an
2 administering state agency shall give priority to projects that
3 leverage private, federal, and local funding or produce the greatest
4 public benefit.

5 (b) To the extent practicable, a project funded pursuant to this
6 division shall include signage informing the public that the project
7 received funding from the Safe Drinking Water, Wildfire
8 Prevention, Drought Preparedness, and Clean Air Bond Act of
9 2024.

10 (c) Projects funded pursuant to this division shall, where
11 appropriate, include the planning, monitoring, and reporting
12 necessary to ensure successful implementation of this division's
13 objectives.

14 90100. For purposes of this division, the following definitions
15 apply:

16 (a) "Committee" means the Safe Drinking Water, Wildfire
17 Prevention, Drought Preparedness, and Clean Air Bond Finance
18 Committee created pursuant to Section 95002.

19 (b) "Community" has the same meaning as set forth in
20 paragraph (1) of subdivision (a) of Section 65302.10 of the
21 Government Code.

22 (c) "Critical community infrastructure" means infrastructure
23 that is necessary to providing vital community and individual
24 functions, including, but not limited to, drinking and wastewater
25 infrastructure, emergency shelters, communication and warning
26 systems, evacuation routes, emergency power and public medical
27 facilities, schools, town halls, hospitals, health clinics, community
28 centers, community nonprofit facilities providing essential services,
29 libraries, homeless shelters, senior and youth centers, childcare
30 facilities, food banks, grocery stores, and parks and recreation
31 sites.

32 (a)

33 (d) "Disadvantaged community" means a community with a
34 median household income of less than 80 percent of the area
35 ~~average~~. average or less than 80 percent of statewide median
36 household income.

37 (b)

38 (e) "Economically distressed areas" has the same meaning as
39 set forth in Section 79702 of the Water Code.

1 (f) “Natural infrastructure” has the same meaning as set forth
2 in paragraph (3) of subdivision (c) of Section 71154.

3 (g) “Nonprofit organization” means a nonprofit corporation
4 qualified to do business in California and qualified under Section
5 501(c)(3) of the Internal Revenue Code.

6 (h) “Protection” includes those actions necessary to prevent
7 harm or damage to persons, property, or natural, cultural, and
8 historic resources, actions to improve access to public open-space
9 areas, or actions to allow the continued use and enjoyment of
10 property or natural, cultural, and historic resources. Protection
11 includes site monitoring, acquisition, development, restoration,
12 preservation, and interpretation.

13 (i) (1) “Restoration” includes the improvement of physical
14 structures or facilities and, in the case of natural systems and
15 landscape features, includes, but is not limited to, any of the
16 following:

17 (A) The control of erosion.

18 (B) Stormwater capture, treatment, reuse, and storage, or to
19 otherwise reduce stormwater pollution.

20 (C) The control and elimination of invasive species and harmful
21 algal blooms.

22 (D) The planting of native species.

23 (E) The removal of waste and debris.

24 (F) Prescribed burning and other fuel hazard reduction
25 measures.

26 (G) Fencing out threats to existing or restored natural resources.

27 (H) Improving instream, riparian, floodplain, or wetland habitat
28 conditions.

29 (I) Other plant and wildlife habitat improvement to increase
30 the natural system value of the property or coastal or ocean
31 resources.

32 (J) Activities described in subdivision (b) of Section 79737 of
33 the Water Code.

34 (2) “Restoration” also includes activities, including the
35 planning, permitting, monitoring, and reporting that are necessary
36 to ensure successful implementation of the restoration objectives.

37 (e)

38 (j) “Severely disadvantaged community” means a community
39 with a median household income of less than 60 percent of the

1 ~~area average.~~ *average or less than 60 percent of statewide median*
2 *household income.*

3 ~~(d)~~

4 (k) “Socially disadvantaged farmer or rancher” has the same
5 meaning set forth in Section 512 of the Food and Agricultural
6 Code. *This provision shall apply to the extent allowable by law.*

7 ~~(e) “Socially disadvantaged group” means a group whose~~
8 ~~members have been subjected to racial, ethnic, or gender prejudice~~
9 ~~because of their identity as members of a group without regard to~~
10 ~~their individual qualities. These groups include all of the following:~~

11 ~~(1) African Americans.~~

12 ~~(2) Native Americans.~~

13 ~~(3) Alaskan Natives.~~

14 ~~(4) Hispanics.~~

15 ~~(5) Asian Americans.~~

16 ~~(6) Native Hawaiians and Pacific Islanders.~~

17 ~~(7) Women.~~

18 (l) “State General Obligation Bond Law” means the State
19 General Obligation Bond Law (Chapter 4 (commencing with
20 Section 16720) of Part 3 of Division 4 of Title 2 of the Government
21 Code), as it may be amended from time to time.

22 (m) “Structure hardening” includes the installation,
23 replacement, or retrofitting of building materials, systems, or
24 assemblies used in the exterior design and construction of existing
25 nonconforming structures with features that are in compliance
26 with Chapter 7A (commencing with Section 701A.1) of Part 2 of
27 Title 24 of the California Code of Regulations, or any appropriate
28 successor regulatory code, with the primary purpose of reducing
29 risk to structures from wildfire or conforming to the low-cost
30 retrofit list, and updates to that list, developed pursuant to
31 paragraph (1) of subdivision (c) of Section 51189 of the
32 Government Code.

33 ~~(f)~~

34 (n) “Tribe” means a federally recognized Native American tribe
35 or a nonfederally recognized Native American tribe listed on the
36 California Tribal Consultation List maintained by the Native
37 American Heritage Commission.

38 ~~(g)~~

39 (o) “Vulnerable population” means a subgroup of population
40 within a region or community that faces a disproportionately

1 heightened risk or increased sensitivity to impacts of climate
2 change and that lacks adequate resources to cope with, adapt to,
3 or recover from such impacts.

4 (p) “Water board” means the State Water Resources Control
5 Board.

6 90105. Funds provided by this division shall not be expended
7 to fulfill any environmental mitigation requirements or compliance
8 obligations imposed by law.

9 90107. Funds provided by this division shall not be expended
10 to pay the costs of the design, construction, operation, mitigation,
11 or maintenance of isolated Delta conveyance facilities. Those costs
12 shall be the responsibility of the water agencies that benefit from
13 the design, construction, operation, mitigation, or maintenance of
14 those facilities.

15 90110. An eligible applicant under this division is a public
16 agency, local agency, nonprofit organization, special district, joint
17 powers authority, tribe, public utility, local publicly owned utility,
18 or mutual water company.

19 90115. The Legislature may enact legislation necessary to
20 implement programs funded by this division.

21 90120. It is the intent of the Legislature that bond moneys shall
22 not be used for shareholder incentives or profits for shareholders
23 of private corporations.

24 90130. For grants awarded for projects under this division,
25 the administering agency may provide advanced payments in the
26 amount of 25 percent of the grant award to the recipient, including
27 state-related entities, to initiate the project in a timely manner.
28 The administering agency shall adopt additional requirements for
29 the recipient of the grant regarding the use of the advanced
30 payments to ensure that the moneys are used properly.

31 90133. For grants awarded for projects under this division,
32 the administering agency may, when awarding a grant, reimburse
33 the grantee’s indirect costs. When reimbursing a grantee for
34 indirect costs, the administering agency shall apply one of the
35 following rates, as requested by the grantee:

36 (a) The grantee’s negotiated indirect cost rate, pursuant to its
37 negotiated indirect cost rate agreement.

38 (b) The de minimis indirect cost rate specified in Part 200 of
39 Title 2 of the Code of Federal Regulations.

1 (c) A rate negotiated by the grantee with another state agency
2 within the last five years.

3 (d) A rate proposed by the grantee in the grantee's program
4 application with the administering state agency if the grantee does
5 not have an existing state rate.

6 90135. (a) The Secretary of the Natural Resources Agency
7 shall publish a list of all program and project expenditures
8 pursuant to this division not less than annually, in written form,
9 and shall post an electronic form of the list on the agency's internet
10 website in a downloadable spreadsheet format. The spreadsheet
11 shall include all of the following information:

12 (1) Information about the location and footprint of each funded
13 project.

14 (2) The project's objectives.

15 (3) The status of the project.

16 (4) Anticipated outcomes.

17 (5) The public benefits to be derived from the project, including
18 whether the project has meaningful and direct benefits to
19 vulnerable populations, disadvantaged communities, or severely
20 disadvantaged communities.

21 (6) The total cost of the project, if known.

22 (7) The amount of bond funding provided.

23 (8) Any matching moneys provided for the project by the grant
24 recipient or other partners.

25 (9) The applicable chapter of this division pursuant to which
26 the recipient received moneys.

27 (b) The Department of Finance shall provide for an independent
28 audit of expenditures pursuant to this division. If an audit, required
29 by law, of any entity that receives funding authorized by this
30 division is conducted pursuant to state law and reveals any
31 impropriety, the California State Auditor or the Controller may
32 conduct or arrange for a full audit of any or all of the activities
33 funded pursuant to this division. Any audit of a federal Department
34 of Energy or National Aeronautics and Space Administration
35 research and development center pursuant to this section shall be
36 conducted in accordance with the Federal Laboratory Contracting
37 Act (Chapter 7 (commencing with Section 12500) of Part 2 of
38 Division 2 of the Public Contract Code).

1 (c) A state agency issuing any grant with funding authorized by
2 this division shall require adequate reporting of the expenditures
3 of the funding from the grant.

4 (d) The costs associated with the publications, audits, statewide
5 bond tracking, cash management, and related oversight activities
6 provided for in this section shall be funded from the proceeds of
7 bonds authorized by this division. These costs shall be shared
8 proportionally by each program funded by this division. Actual
9 costs incurred to administer nongrant programs authorized by
10 this division shall be paid from the proceeds of bonds authorized
11 by this division.

12 90140. At least 40 percent of the total funds available pursuant
13 to this division shall be allocated for projects that provide
14 meaningful and direct benefits to vulnerable populations or
15 disadvantaged communities. At least 10 percent of the total funds
16 available pursuant to this division shall be allocated for projects
17 that provide meaningful and direct benefits to severely
18 disadvantaged communities.

19 90150. To the extent feasible, a project whose application
20 includes the use of services of the California Conservation Corps
21 or certified community conservation corps, as defined in Section
22 14507.5, shall be given preference for receipt of a grant under
23 this division.

24 90500. (a) The proceeds of bonds issued and sold pursuant to
25 this division, exclusive of refunding bonds issued and sold pursuant
26 to Section 95012, shall be deposited in the ~~Drought, Flood, and~~
27 ~~Water Resilience, Wildfire and Forest Resilience, Coastal~~
28 ~~Resilience, Extreme Heat Mitigation, Biodiversity and~~
29 ~~Nature-Based Climate Solutions, Climate Smart Agriculture, Park~~
30 ~~Creation and Outdoor Access, and Clean Energy Safe Drinking~~
31 ~~Water, Wildfire Prevention, Drought Preparedness, and Clean~~
32 ~~Air Fund~~, which is hereby created in the State Treasury. Moneys
33 in the fund shall be available, upon appropriation by the
34 Legislature, for purposes of this division.

35 (b) Proceeds of bonds issued and sold pursuant to this division
36 shall be allocated according to the following schedule:

37 (1) ~~Five billion two hundred million dollars (\$5,200,000,000)~~
38 ~~Three billion eight hundred million dollars (\$3,800,000,000)~~ for
39 ~~safe drinking water~~, drought, flood, and water resilience programs,
40 in accordance with Chapter 2 (commencing with Section 91000).

(2) ~~Three billion dollars (\$3,000,000,000)~~ *One billion five hundred million dollars (\$1,500,000,000)* for wildfire and forest resilience programs, in accordance with Chapter 3 (commencing with Section 91500).

(3) ~~Two billion dollars (\$2,000,000,000)~~ *One billion two hundred million dollars (\$1,200,000,000)* for coastal resilience programs, in accordance with Chapter 4 (commencing with Section 92000).

(4) ~~Five hundred million dollars (\$500,000,000)~~ *Four hundred fifty million dollars (\$450,000,000)* for extreme heat mitigation programs, in accordance with Chapter 5 (commencing with Section 92500).

(5) ~~Two billion dollars (\$2,000,000,000)~~ *One billion two hundred million dollars (\$1,200,000,000)* for biodiversity protection and nature-based climate solution programs, in accordance with Chapter 6 (commencing with Section 93000).

(6) ~~Three hundred million dollars (\$300,000,000) for climate smart agriculture~~ *Three hundred million dollars (\$300,000,000) for climate-smart, sustainable, and resilient farms, ranches, and working lands* programs, in accordance with Chapter 7 (commencing with Section 93500).

(7) ~~Five hundred million dollars (\$500,000,000)~~ *Seven hundred million dollars (\$700,000,000)* for park creation and outdoor access programs, in accordance with Chapter 8 (commencing with Section 94000).

(8) ~~Two billion dollars (\$2,000,000,000)~~ *Eight hundred fifty million dollars (\$850,000,000)* for clean-energy air programs, in accordance with Chapter 9 (commencing with Section 94500).

90600. (a) An amount that equals not more than ~~5~~ *the lesser of 7 percent of the funds or twenty million dollars (\$20,000,000)* allocated for a grant program pursuant to this division may be used to pay the administrative costs of that program.

(b) (1) *Up to 10 percent of the funds available pursuant to each chapter of this division may be allocated for technical assistance to disadvantaged communities, severely disadvantaged communities, or vulnerable populations. The agency administering the moneys shall operate a multidisciplinary technical assistance program for disadvantaged communities, severely disadvantaged communities, or vulnerable populations.*

(2) *Funds used for providing technical assistance to disadvantaged communities, severely disadvantaged communities, or vulnerable populations may exceed 10 percent of the funds allocated under each chapter of this division if the state agency administering the moneys determines that there is a need for the additional funding.*

90610. To the extent practicable, a project that receives moneys pursuant to this division ~~shall~~ *may* provide workforce education and training, contractor, and job opportunities for vulnerable populations ~~or socially disadvantaged groups.~~ *populations.*

90620. *Funds allocated pursuant to this division may be used by the Natural Resources Agency and its departments, boards, and conservancies to collaboratively fund projects at a landscape or multijurisdictional scale to provide multiple benefits.*

CHAPTER 2. *SAFE DRINKING WATER, DROUGHT, FLOOD, AND WATER RESILIENCE*

91000. The sum of ~~five billion two hundred million dollars (\$5,200,000,000)~~ *three billion eight hundred million dollars (\$3,800,000,000)* shall be available, upon appropriation by the Legislature, for *safe drinking water*, drought, flood, and water resilience programs.

91010. Of the funds made available by Section 91000, ~~two billion two hundred fifty million dollars (\$2,250,000,000)~~ *one billion eight hundred eighty-five million dollars (\$1,885,000,000)* shall be available, upon appropriation by the Legislature, to protect and increase California water supply and water quality.

91011. (a) Of the funds made available by Section 91010, ~~four hundred million dollars (\$400,000,000)~~ *six hundred ten million dollars (\$610,000,000)* shall be available, upon appropriation by the Legislature, to the State Water Resources Control Board for ~~projects~~ *grants or loans* that improve water quality or help provide clean, safe, and reliable drinking water. Eligible projects include, but are not limited to, any of the following:

(a) ~~Competitive grants for projects~~

(1) *Projects that help to provide clean, safe, and reliable drinking water to disadvantaged communities.* ~~water.~~

(b) ~~Competitive grants for projects~~

1 (2) *Projects that increase water quality monitoring and*
2 *remediation of perfluoroalkyl and polyfluoroalkyl substances.*

3 ~~(e)~~

4 (3) *Innovative projects to increase the affordability of safe*
5 *drinking water for severely disadvantaged communities. water.*

6 ~~(d)~~

7 (4) *Projects that implement countywide drought and water*
8 *shortage contingency plans adopted pursuant to Chapter 10*
9 *(commencing with Section 10609.40) of Part 2.55 of Division 6*
10 *of the Water Code.*

11 ~~(e) Competitive grants or loans for projects~~

12 (5) *Projects that prevent, reduce, or treat the contamination of*
13 *groundwater that serves as a major source of drinking water for a*
14 *community.*

15 (6) *Projects to consolidate water or wastewater systems or to*
16 *extend wastewater service to residences currently served by*
17 *inadequate onsite sewer treatment systems.*

18 (7) *Grants for projects and technical and financial assistance*
19 *to address hexavalent chromium in drinking water.*

20 (8) (A) *Tribal water infrastructure projects that provide safe,*
21 *clean, and reliable drinking water to tribal communities.*

22 (B) *Not less than twenty-five million dollars (\$25,000,000) shall*
23 *be allocated to projects described in subparagraph (A).*

24 (b) *If there is a responsible party identified to have contributed*
25 *to contamination of a drinking water well, or system, the water*
26 *system or public agency responsible for the infrastructure may*
27 *apply for competitive state grant program funding for a drinking*
28 *water infrastructure project to address water quality issues. The*
29 *grant applicant may apply for funding in the amount above and*
30 *beyond what the responsible party is required to contribute to the*
31 *infrastructure project.*

32 (c) *Reasonable geographic allocation to eligible projects*
33 *throughout the state shall be considered, including both northern*
34 *and southern California and inland and coastal regions.*

35 (d) *At least 40 percent of the allocation made pursuant to this*
36 *section shall benefit disadvantaged communities, severely*
37 *disadvantaged communities, or vulnerable populations.*

38 (e) *For severely disadvantaged communities with populations*
39 *of no more than 500 persons that serve no more than 100 service*

connections, there shall be no maximum amount per service connection for eligible projects.

91012. (a) Of the funds made available by Section 91010, ~~four hundred million dollars (\$400,000,000)~~ *three hundred eighty-six million two hundred fifty thousand dollars (\$386,250,000)* shall be available, upon appropriation by the Legislature, to the Department of Water Resources for projects related to groundwater storage, ~~banking, conjunctive use, recharge, or other groundwater projects that improve water resilience. Projects funded pursuant to this subdivision shall provide multiple benefits, such as improved water quality and supply, improved flood water management, and provision of wildlife habitat.~~ *groundwater banking, groundwater recharge, or instream flow projects that support the conjunctive use of groundwater and surface water supplies. Of the funds made available pursuant to this subdivision, a minimum of twenty-five million dollars (\$25,000,000) shall be for projects that provide direct benefits to tribal communities.*

(b) Of the funds made available by subdivision (a), ~~two hundred million dollars (\$200,000,000)~~ *one hundred ninety-three million one hundred twenty-five thousand dollars (\$193,125,000)* shall be available for projects that increase groundwater ~~storage.~~ *storage, improve the management and operation of groundwater storage, or are for groundwater banking, and support implementation of the Sustainable Groundwater Management Act (Part 2.74 (commencing with Section 10720) of Division 6 of the Water Code).*

(c) (1) Of the funds made available by subdivision (a), ~~two hundred million dollars (\$200,000,000)~~ *one hundred ninety-three million one hundred twenty-five thousand dollars (\$193,125,000)* shall be available for projects that support ~~groundwater banking, conjunctive use, recharge, or other groundwater projects that improve water resilience.~~ *conjunctive use and groundwater recharge. The projects shall provide the following benefits:*

(A) Provide improved regional watershed management.

(B) Address current and projected drought conditions and demonstrate adaptation to climate change for a region.

(C) Provide ecosystem benefits to fish and wildlife and improve stream flow for anadromous fish.

(2) Reasonable geographic allocation to eligible projects throughout the state shall be considered, including both northern and southern California and inland and coastal regions.

1 91013. Of the funds made available by Section 91010, ~~three~~
2 ~~hundred million dollars (\$300,000,000)~~ *two hundred million dollars*
3 *(\$200,000,000)* shall be available, upon appropriation by the
4 Legislature, to the Department of Conservation's Multibenefit
5 Land Repurposing Program for groundwater sustainability projects
6 that *reduce groundwater use, repurpose irrigated agricultural*
7 *land, provide wildlife habitat, improve drought resilience, improve*
8 ~~flood water resilience or floodwater management, and or support~~
9 implementation of the Sustainable Groundwater Management Act
10 (Part 2.74 (commencing with Section 10720) of Division 6 of the
11 Water Code).

12 91014. (a) Of the funds made available by Section 91010,
13 ~~three hundred million dollars (\$300,000,000)~~ *three hundred*
14 *eighty-six million two hundred fifty thousand dollars*
15 *(\$386,250,000)* shall be available, upon appropriation by the
16 Legislature, to the State Water Resources Control Board for grants
17 and projects related to water reuse and ~~recycling~~. *recycling,*
18 *including, but not limited to, the following:*

19 (1) *Treatment, storage, conveyance, and distribution facilities*
20 *for potable and nonpotable recycling projects.*

21 (2) *Dedicated distribution infrastructure to serve residential,*
22 *commercial, agricultural, and industrial end user retrofit projects*
23 *to allow use of recycled water.*

24 (3) *Multiple-benefit recycled water projects that improve water*
25 *quality.*

26 (b) *At least a 50-percent local cost share shall be required for*
27 *projects funded pursuant to this section. That cost share may be*
28 *suspended or reduced for disadvantaged communities or severely*
29 *disadvantaged communities, or prorated for disadvantaged*
30 *communities or severely disadvantaged communities within a*
31 *larger service area project. A loan, grant, or other funding*
32 *received, regardless of funding source, shall qualify as local cost*
33 *share.*

34 (c) *The water board shall adopt modified grant funding*
35 *requirements for large-scale water recycling or reuse projects,*
36 *including all of the following requirements:*

37 (1) *Ancillary facilities that are part of large-scale water*
38 *recycling or reuse projects shall be eligible for funding. Ancillary*
39 *facilities include, but are not limited to, pipelines, extraction wells,*

1 injection wells, recharge basins, and nitrogen removal treatment
2 systems, pertinent structures, and connection assemblies.

3 (2) This section does not preclude the water board from
4 awarding funding to a large-scale water recycling or reuse project
5 for multiple project phases or components, or more than once
6 during the project development period. The water board shall not
7 require user agreements or contracts for water delivery, nor shall
8 full completion of the project be required before the submission
9 of a subsequent grant application, as a condition for award of
10 grant funding.

11 (3) At least 10 percent of the grant funding shall be awarded
12 for the purpose of planning and design.

13 (4) Reasonable geographic allocation to eligible projects
14 throughout the state, including both northern and southern
15 California and coastal and inland regions.

16 ~~91015. (a) Of the funds made available by Section 91010, one~~
17 ~~hundred million dollars (\$100,000,000) shall be available, upon~~
18 ~~appropriation by the Legislature, to the Department of Water~~
19 ~~Resources for capital investments in brackish desalination, seawater~~
20 ~~desalination, contaminant and salt removal, and salinity~~
21 ~~management projects to improve California water and drought~~
22 ~~resilience. Priority shall be given to projects that use renewable~~
23 ~~energy and reduce greenhouse gas emissions associated with their~~
24 ~~construction and operation.~~

25 ~~(b) For seawater desalination projects described in subdivision~~
26 ~~(a), priority shall be given to projects that do the following:~~

27 ~~(1) Incorporate measures to minimize the intake of all forms of~~
28 ~~marine, brackish, and freshwater life in their construction and~~
29 ~~operation.~~

30 ~~(2) Incorporate measures to minimize the adverse impacts of~~
31 ~~outfalls on marine, brackish, and freshwater life in their~~
32 ~~construction and operation.~~

33 ~~91016.~~

34 ~~91015. Of the funds made available by Section 91010, three~~
35 ~~hundred million dollars (\$300,000,000) seventy-five million dollars~~
36 ~~(\$75,000,000) shall be available, upon appropriation by the~~
37 ~~Legislature, to the California Water Commission for projects under~~
38 ~~the Water Storage Investment Program. Priority for these funds~~
39 ~~and any funds returned to the commission shall be to support timely~~
40 ~~completion of existing approved projects by providing supplemental~~

1 *grants to reflect the increase in costs due to inflation since the*
2 *original grant applications and any increase in public benefits.*

3 ~~91017. Of the funds made available by Section 91010, one~~
4 ~~hundred million dollars (\$100,000,000) shall be available, upon~~
5 ~~appropriation by the Legislature, to the Department of Water~~
6 ~~Resources for projects that increase water conservation in~~
7 ~~agricultural and urban areas.~~

8 *91016. Of the funds made available by Section 91010, sixty-two*
9 *million five hundred thousand dollars (\$62,500,000) shall be*
10 *available, upon appropriation by the Legislature, for capital*
11 *investments in brackish desalination, contaminant and salt*
12 *removal, and salinity management projects to improve California*
13 *water and drought resilience. Priority shall be given to projects*
14 *that use new incremental eligible renewable energy resources*
15 *during operation and reduce greenhouse gas emissions associated*
16 *with their construction and operation.*

17 ~~91018.~~

18 *91017. Of the funds made available by Section 91010, one*
19 ~~*hundred million dollars (\$100,000,000)*~~ *fifteen million dollars*
20 *(\$15,000,000) shall be available, upon appropriation by the*
21 *Legislature, to the Department of Water Resources and the State*
22 *Water Resources Control Board to improve water data management*
23 *and to implement Section 144 of the Water Code to reactivate*
24 *existing stream gages and deploy new gages.*

25 ~~91019. (a)~~

26 *91018. Of the funds made available by Section 91010, two*
27 ~~*hundred fifty million dollars (\$250,000,000)*~~ *seventy-five million*
28 *dollars (\$75,000,000) shall be available, upon appropriation by*
29 *the Legislature, to the Natural Resources Agency and the*
30 *Department of Water Resources for competitive grants for regional*
31 *conveyance projects or repairs to existing conveyances. Priority*
32 *shall be given to projects that provide one or more of the following*
33 *benefits:*

34 ~~(1)~~

35 *(a) Improvements in regional or interregional water supply or*
36 *water supply reliability.*

37 ~~(2)~~

38 *(b) Increased groundwater recharge or mitigation of conditions*
39 *of groundwater overdraft, salinity intrusion, water quality*
40 *degradation, or subsidence.*

1 ~~(3)~~

2 (c) Adaptation to the impacts of hydrologic changes.

3 ~~(4)~~

4 (d) Improvements in water security from drought, natural
5 disasters, or other events that could interrupt water supplies.

6 ~~(5)~~

7 (e) Providing safe drinking water for disadvantaged communities
8 and economically distressed areas.

9 ~~(b) Of the funds made available by subdivision (a), one hundred~~
10 ~~million dollars (\$100,000,000) shall be available to the Natural~~
11 ~~Resources Agency for implementation of the settlement agreement~~
12 ~~to restore the San Joaquin River referenced in Section 2080.2 of~~
13 ~~the Fish and Game Code and allocated as follows:~~

14 ~~(1) Fifty million dollars (\$50,000,000) shall be available for~~
15 ~~restoration of capacity of the Friant-Kern Canal that was lost due~~
16 ~~to subsidence, consistent with the water management goal under~~
17 ~~the Stipulation of Settlement entered September 13, 2006, in~~
18 ~~Natural Resources Defense Council v. Rodgers. For the purposes~~
19 ~~of awarding funding under this paragraph, a cost share from~~
20 ~~nonstate sources of not less than 50 percent of the total costs of~~
21 ~~the project shall be required.~~

22 ~~(2) Fifty million dollars (\$50,000,000) shall be available to~~
23 ~~implement the restoration goal of the Stipulation of Settlement~~
24 ~~entered September 13, 2006, in Natural Resources Defense Council~~
25 ~~v. Rodgers, including funding for restoration projects identified~~
26 ~~in paragraph 11 of the Stipulation of Settlement, and funding to~~
27 ~~support the work of the Restoration Administrator and Technical~~
28 ~~Advisory Committee. The Restoration Administrator and Technical~~
29 ~~Advisory Committee shall use these funds in part to review and~~
30 ~~provide input regarding the implementation of projects identified~~
31 ~~in paragraph 11 of the Stipulation of Settlement.~~

32 *91019. Of the funds made available by Section 91010,*
33 *seventy-five million dollars (\$75,000,000) shall be available, upon*
34 *appropriation by the Legislature, to the Department of Water*
35 *Resources for projects that increase water conservation in*
36 *agricultural and urban areas.*

37 *91020. Of the funds made available by Section 91000, one*
38 ~~billion six hundred fifty million dollars (\$1,650,000,000)~~ *one*
39 *billion one hundred forty million dollars (\$1,140,000,000) shall*

be available, upon appropriation by the Legislature, to reduce flood risk and improve stormwater management.

~~91021. Of the funds made available by Section 91020, one billion dollars (\$1,000,000,000) five hundred fifty million dollars (\$550,000,000) shall be available, upon appropriation by the Legislature, to the Natural Resources Agency and its departments, boards, and conservancies for flood management projects. Priority shall be given to projects designed and implemented to achieve the objectives of both flood safety and ecosystem functions, while providing additional benefits. At least 40 percent of the allocation made pursuant to this section shall benefit disadvantaged communities, severely disadvantaged communities, or vulnerable populations. Eligible projects include, but are not limited to, the following: Funding shall be allocated as follows:~~

~~(a) Projects that implement the Central Valley Flood Protection Plan. To the maximum extent feasible, projects shall provide ecosystem benefits and groundwater recharge. The Department of Water Resources shall adopt guidelines and incentives to encourage cost-effective groundwater recharge and ecosystem benefits as part of flood risk reduction and management.~~

~~(b) Projects that implement the Coastal Watershed Flood Risk Reduction Program.~~

~~(c) Projects~~

~~(a) One hundred fifty million dollars (\$150,000,000) shall be available for projects in the Sacramento-San Joaquin Delta to improve existing levees to increase flood protection and improve climate resiliency. For purposes of this subdivision, "Sacramento-San Joaquin Delta" has the same meaning as described in Section 12220 of the Water Code.~~

~~(d) Projects~~

~~(b) One hundred fifty million dollars (\$150,000,000) shall be available for projects that implement the Flood Control Subventions Program.~~

~~(e) Projects~~

~~(c) Two hundred fifty million dollars (\$250,000,000) shall be available for projects related to the systemwide evaluation, repair, rehabilitation, reconstruction, expansion, or replacement of levees, weirs, bypasses, and facilities of the State Plan of Flood Control.~~

91022. Of the funds made available by Section 91020, four hundred eighty million dollars ~~(\$400,000,000)~~ (\$480,000,000)

1 shall be available, upon appropriation by the Legislature, to the
2 Department of Water Resources for *the Dam Safety and Climate*
3 *Resilience Local Assistance Program* for competitive grants for
4 projects that enhance dam safety and reservoir operations and
5 protect public benefits. Eligible projects include, but are not limited
6 to, dam safety projects at high hazard dams in poor condition, new
7 spillways and repairs at existing dams to facilitate implementation
8 of Forecast-Informed Reservoir Operations, and reservoir seismic
9 retrofit projects. A grant cost share of at least 50 percent shall be
10 required for projects funded pursuant to this section: *benefits*
11 *pursuant to Section 6700 of the Water Code.*

12 91023. Of the funds made available by Section 91020, ~~two~~
13 ~~hundred fifty million dollars (\$250,000,000)~~ *one hundred ten*
14 *million dollars (\$110,000,000)* shall be available, upon
15 appropriation by the Legislature, to the State Water Resources
16 Control Board for grants for ~~multibenefit storm water~~
17 *multiple-benefit urban stormwater management projects.*
18 ~~Preference shall be given to multibenefit and natural infrastructure~~
19 ~~projects. Projects funded pursuant to this section shall address~~
20 *flooding in urbanized areas and provide multiple benefits, with*
21 *preference given to natural infrastructure projects. Eligible*
22 *stormwater projects shall include, but are not limited to,*
23 *stormwater capture and reuse, planning and implementation of*
24 *low-impact development, restoration of urban streams and*
25 *watersheds, debris flow mitigation, and increasing permeable*
26 *surfaces to help reduce flooding.*

27 91030. Of the funds made available by Section 91000, ~~one~~
28 ~~billion dollars (\$1,000,000,000)~~ *six hundred five million dollars*
29 *(\$605,000,000)* shall be available, upon appropriation by the
30 Legislature, ~~to improve watershed resilience and to protect and~~
31 ~~restore rivers, lakes, and streams. streams, and to improve~~
32 *watershed resilience, including the resilience of fish and wildlife*
33 *within the watershed.*

34 91031. (a) Of the funds made available by Section 91030,
35 ~~three hundred million dollars (\$300,000,000)~~ *one hundred million*
36 *dollars (\$100,000,000)* shall be available, upon appropriation by
37 the Legislature, to the Department of Water Resources for ~~grants~~
38 ~~and direct expenditures projects related to integrated regional water~~
39 ~~management to improve climate resilience on a watershed basis.~~
40 *The department shall update and revise the guidelines for the*

1 *integrated regional water management program to address impacts*
2 *associated with climate risk.*

3 ~~(b) The Department of Water Resources shall develop standards~~
4 ~~and provide technical and financial support for the development~~
5 ~~of watershed climate risk assessments that do all of the following:~~

6 ~~(1) Identify watershed scale climate resilience targets related~~
7 ~~to water supply, water quality, habitat protection and enhancement,~~
8 ~~flood protection, and other climate resilience targets appropriate~~
9 ~~for the watershed.~~

10 ~~(2) Provide investment and implementation plans for projects~~
11 ~~to achieve the targets in the most cost-effective manner.~~

12 ~~(3) Include uniform analytic standards to facilitate project~~
13 ~~selection and performance evaluation.~~

14 ~~(4) Provide for the deployment of appropriate instrumentation,~~
15 ~~measurement, and monitoring to allow for evaluation of project~~
16 ~~effectiveness in achieving progress toward resilience targets.~~

17 ~~(5) Include consideration of equity and environmental justice~~
18 ~~needs.~~

19 ~~(6) Include requirements for adaptive management and~~
20 ~~refinement in project selection and implementation.~~

21 ~~(7) Build on and coordinate with existing integrated regional~~
22 ~~water management plans.~~

23 ~~(c) The Department of Water Resources may select pilot~~
24 ~~watersheds to test methods to improve watershed climate resilience~~
25 ~~and guide the implementation of this section including, but not~~
26 ~~limited to, both of the following:~~

27 ~~(1) Development of standard models and analytic approaches~~
28 ~~that improve climate risk assessment, and project selection and~~
29 ~~evaluation.~~

30 ~~(2) Methods to reduce the cost of achieving climate resilience~~
31 ~~targets and outcomes.~~

32 ~~(d) (1) The Department of Water Resources shall make grants~~
33 ~~to public agencies for the implementation of projects identified in~~
34 ~~watershed climate risk assessments based on both of the following:~~

35 ~~(A) The severity of the identified climate risk.~~

36 ~~(B) The potential to reduce that risk in the most cost-effective~~
37 ~~manner.~~

38 ~~(2) The Department of Water Resources shall consider the extent~~
39 ~~the project achieves multiple benefits, addresses equity issues, and~~
40 ~~provides a model for other watersheds.~~

1 ~~(3) Existing plans that provide equivalent climate risk~~
2 ~~assessment may be used as the basis to fund grants that improve~~
3 ~~regional climate resilience, including conjunctive use projects,~~
4 ~~groundwater recharge projects, and other projects that provide~~
5 ~~increased water supply flexibility or other resilience benefits.~~

6 ~~(e) The Department of Water Resources shall develop guidelines~~
7 ~~to improve governance of integrated regional water management~~
8 ~~plans and for program implementation of watershed climate~~
9 ~~resilience that facilitate multiple benefit projects, allow program~~
10 ~~funds to be used as matching funds for other funding sources, and~~
11 ~~require detailed reporting on project outcomes and progress toward~~
12 ~~achieving climate risk targets.~~

13 91032. ~~(a) Of the funds made available by Section 91030, six~~
14 ~~hundred million dollars (\$600,000,000) three hundred thirty-five~~
15 ~~million dollars (\$335,000,000) shall be available, upon~~
16 ~~appropriation by the Legislature, for projects that protect and~~
17 ~~restore rivers, wetlands, streams, lakes, and watersheds.~~
18 ~~watersheds, and improve the resilience of fish and wildlife.~~ Projects
19 shall improve climate resilience, water supplies, or water quality.
20 To the extent feasible, preference shall be given to natural
21 infrastructure projects. At least 40 percent of the allocation made
22 pursuant to this section shall benefit disadvantaged communities
23 ~~communities, severely disadvantaged communities,~~ or vulnerable
24 populations. The funds made available pursuant to this section
25 shall be allocated to any of the following: *as follows:*

26 ~~(1) Projects that protect and restore rivers, streams, and lakes~~
27 ~~to improve fish and wildlife habitat.~~

28 ~~(2) Multibenefit watershed protection or restoration projects~~
29 ~~that improve climate resilience within the Los Angeles River~~
30 ~~Watershed and the San Gabriel River Watershed that are~~
31 ~~implemented pursuant to Section 79508 of the Water Code.~~

32 ~~(3) Multibenefit urban stream and river parkway projects under~~
33 ~~the Urban Streams Restoration Program established pursuant to~~
34 ~~Section 7048 of the Water Code that protect and restore riparian~~
35 ~~habitats, improve climate resilience, enhance natural drainages,~~
36 ~~protect and restore watersheds, and provide public access.~~

37 ~~(4) Projects that are included in the Lake Tahoe Environmental~~
38 ~~Improvement Program.~~

39 ~~(b) Of the funds made available by subdivision (a), seventy-five~~
40 ~~million dollars (\$75,000,000)~~

(a) *Forty million dollars (\$40,000,000) shall be available pursuant to Division 22.8 (commencing with Section 32600) for projects that improve the climate resiliency or the protection of the Los Angeles River Watershed or are consistent with the Lower Los Angeles River Revitalization Plan.*

~~(c) (1) Of the funds made available by subdivision (a), seventy-five million dollars (\$75,000,000)~~

(b) *Forty million dollars (\$40,000,000) shall be available pursuant to Division 23 (commencing with Section 33000) for projects that improve the climate resiliency or the protection of the Los Angeles River Watershed and are a part of the revitalization plan developed by the Upper Los Angeles River and Tributaries Working Group pursuant to Section 33220 or the Los Angeles River Master Plan.*

~~(2) Of the funds made available by paragraph (1), forty million dollars (\$40,000,000) shall be allocated for projects that include, but are not limited to, projects that protect or enhance the Los Angeles River, parkway projects that include connectivity to parks and open space in neighboring communities within the San Fernando Valley, including Aliso Creek, and the Tujunga Wash, and projects along the Arroyo Seco waterway.~~

~~(d) Of the funds made available by subdivision (a), fifty million dollars (\$50,000,000)~~

(c) *Fifty million dollars (\$50,000,000) shall be available to the Riverine Stewardship Program established pursuant to Section 7049 of the Water Code for projects that improve the climate resiliency or for the protection of the San Mateo Creek Watershed in the San Francisco Bay Area: resiliency.*

(d) *Twenty-five million dollars (\$25,000,000) shall be available to the State Coastal Conservancy for the Santa Ana River Conservancy Program.*

(e) *Twenty-five million dollars (\$25,000,000) shall be available for multiple-benefit urban stream and river projects under the Urban Streams Restoration Program established pursuant to Section 7048 of the Water Code that protect and restore riparian habitats, improve climate resilience, enhance natural drainages, protect and restore watersheds, and provide public access.*

(f) *Twenty-five million dollars (\$25,000,000) shall be available to the Natural Resources Agency for projects that improve conditions on wildlife refuges and wetland habitat areas. Projects*

1 may include the acquisition and delivery of water from willing
2 sellers and water conveyance rights to achieve compliance with
3 subsection (d) of Section 3406 of the federal Central Valley Project
4 Improvement Act (Title 34 of Public Law 102-575) and the
5 acquisition of water and conveyance rights for the Lower Klamath
6 National Wildlife Refuge.

7 (g) Ten million dollars (\$10,000,000) shall be available to the
8 Wildlife Conservation Board for the Lower American River
9 Conservancy Program.

10 (h) Twenty-five million dollars (\$25,000,000) shall be available
11 to the State Coastal Conservancy to protect and restore watersheds
12 through the Coyote Valley Conservation Program in the County
13 of Santa Clara.

14 (i) Twenty-five million dollars (\$25,000,000) shall be available
15 to the State Coastal Conservancy to protect and restore watersheds
16 through the West Coyote Hills Program.

17 (j) (1) Fifty million dollars (\$50,000,000) shall be available to
18 the water board for loans or grants for projects that will address
19 water quality problems arising in the California-Mexico
20 cross-border rivers and coastal waters. Funds may be made
21 available under this subdivision for water quality projects in the
22 Tijuana River Valley Watershed, as described in the Tijuana River
23 Plan created pursuant to Section 71107, and for projects consistent
24 with the New River Water Quality, Public Health, and River
25 Parkway Development Program, as described in Section 71103.6.

26 (2) Grants or loans awarded under this subdivision for projects
27 located outside of California shall have a documented water quality
28 benefit to California and its residents.

29 (3) Funding may be awarded to bilateral financial institutions
30 as a state match pursuant to this subdivision only after federally
31 committed funds have been secured and are available for
32 expenditure on a one-to-one basis.

33 (k) Twenty million dollars (\$20,000,000) shall be available to
34 improve the climate resiliency or for the protection of the Clear
35 Lake Watershed.

36 91033. (a) Of the funds made available by Section 91030, one
37 hundred seventy million dollars ~~(\$100,000,000)~~ (\$170,000,000)
38 shall be available, upon appropriation by the Legislature, to
39 implement the Salton Sea Management Program 10-year ~~Plan~~

1 *Plan, and any subsequent revisions to that plan, or any subsequent*
2 *plans, to provide air quality, public health, and habitat benefits.*

3 *(b) Of the funds made available by subdivision (a), ten million*
4 *dollars (\$10,000,000) shall be available for either of the following:*

5 *(1) The creation of a Salton Sea Conservancy.*

6 *(2) The Salton Sea Authority.*

7 91040. *(a) Of the funds made available by Section 91000,*
8 ~~*three hundred million dollars (\$300,000,000)*~~ *one hundred fifty*
9 *million dollars (\$150,000,000) shall be available, upon*
10 *appropriation by the Legislature, to the Wildlife Conservation*
11 *Board for projects pursuant to the guidelines of the Stream Flow*
12 *Enhancement Program, including the acquisition of water or water*
13 *rights, acquisition of land that includes water rights or contractual*
14 *rights to water, and short- or long-term water transfers and leases.*

15 *(b) Of the funds made available by subdivision (a), fifty million*
16 *dollars (\$50,000,000) shall be available to the Wildlife*
17 *Conservation Board for the Habitat Enhancement and Restoration*
18 *Program for fishery enhancement projects and programs that*
19 *support reintroducing salmon into cold water habitat in the*
20 *Sacramento and San Joaquin Rivers watersheds.*

21 91045. *Of the funds made available by Section 91000, twenty*
22 *million dollars (\$20,000,000) shall be available, upon*
23 *appropriation by the Legislature, to the Natural Resources Agency*
24 *for grants to nature and climate education and research facilities,*
25 *nonprofit organizations and public institutions, natural history*
26 *museums, California zoos and aquariums accredited by the*
27 *Association of Zoos and Aquariums, and geologic heritage sites*
28 *that serve diverse populations. Grants may be used for buildings,*
29 *equipment, structures, and exhibit galleries that present collections*
30 *to promote climate, biodiversity, and cultural literacy. Projects*
31 *may support species recovery and biodiversity protection in order*
32 *to advance the state's 30x30 conservation goal.*

33 91050. *Projects funded pursuant to this chapter shall be*
34 *consistent with the policies and guidelines established by the Water*
35 *Resilience Portfolio, California's Water Supply Strategy, the*
36 *Central Valley Flood Protection Plan, and the Sustainable*
37 *Groundwater Management Act (Part 2.74 (commencing with*
38 *Section 10720) of Division 6 of the Water Code), if applicable.*

CHAPTER 3. WILDFIRE AND FOREST RESILIENCE

91500. The sum of ~~three billion dollars (\$3,000,000,000)~~ *one billion five hundred million dollars (\$1,500,000,000)* shall be available, upon appropriation by the Legislature, for wildfire prevention, including reducing community wildfire risk and restoring the health and resilience of ~~forests~~ *forests and landscapes*.

91510. (a) Of the funds made available by Section 91500, ~~two hundred seventy-five million dollars (\$275,000,000)~~ *one hundred thirty-five million dollars (\$135,000,000)* shall be available, upon appropriation by the Legislature, to the Office of Emergency Services for a ~~prehazard~~ *wildfire* mitigation grant program. The Office of Emergency Services shall coordinate with the Department of Forestry and Fire Protection in administering these moneys. The grant program shall assist local and state agencies to leverage additional funds, including matching grants from federal agencies. Funds may be used to provide loans, rebates, direct assistance, and matching funds for projects that prevent wildfires, increase resilience, *maintain existing wildfire risk reduction projects*, reduce the risk of wildfires to communities, or increase *home or* community hardening. *Projects shall benefit disadvantaged communities, severely disadvantaged communities, or vulnerable populations*. Eligible projects include, but are not limited to, any of the following:

(1) Grants to local agencies, state agencies, joint powers authorities, *nonprofit organizations, resource conservation districts*, and tribes for projects that reduce wildfire risks to people and property consistent with an approved community wildfire protection plan.

(2) Grants to local agencies, state agencies, joint powers authorities, tribes, resource conservation districts, fire safe councils, and nonprofit organizations for structure hardening of critical community infrastructure, *wildfire smoke mitigation*, evacuation centers, *including community clean air centers*, structure hardening projects that reduce the risk of wildfire for entire neighborhoods and communities, water delivery system improvements for fire suppression purposes for communities in *very high or high* fire hazard ~~severity zones or very high fire hazard severity zones~~, as designated by the Director of Forestry and Fire Protection pursuant

to Article 9 (commencing with Section 4201) of Chapter 1 of Part 2 of Division 4 or by a local agency pursuant to Chapter 6.8 (commencing with Section 51175) of Part 1 of Division 1 of Title 5 of the Government Code, areas, wildfire buffers, and incentives to remove structures that significantly increase hazard risk.

(3) Grants, in coordination with the Public Utilities Commission, to local agencies, state agencies, special districts, joint powers authorities, tribes, and nonprofit organizations for zero-emission backup power, energy storage, and microgrids for critical community infrastructure in order to provide continuity of electrical service, reduced wildfire ignitions, and to safeguard communities from disruption due to public safety power shutoffs, deenergization events, wildfire, or air pollution caused by wildfire, extreme heat, or other disaster.

(4) *Grants under the Home Hardening Program to retrofit, harden, or create defensible space for homes at high risk of wildfire in order to protect California communities.*

(b) The Office of Emergency Services and the Department of Forestry and Fire Protection shall prioritize ~~prehazard wildfire~~ mitigation grant funding applications from local agencies based on the Fire Risk Reduction Community list, ~~upon development of that list,~~ pursuant to Section 4290.1.

(c) The Office of Emergency Services and the Department of Forestry and Fire Protection shall provide technical assistance to disadvantaged communities, severely disadvantaged communities, or vulnerable populations, including those with access and functional needs, socially disadvantaged farmers or ranchers, and economically distressed areas to ensure the grant program reduces the vulnerability of those most in need.

91520. Of the funds made available by Section 91500, ~~two billion five hundred million dollars (\$2,500,000,000)~~ *one billion two hundred five million dollars (\$1,205,000,000)* shall be available, upon appropriation by the Legislature, to the Natural Resources Agency and to its departments, boards, and conservancies for projects and grants to improve local fire prevention capacity, improve forest health and resilience, and reduce the risk of wildfire spreading into populated areas from wildlands. Where appropriate, projects may include activities on lands owned by the United States. The funding made available by this section shall be allocated as follows:

1 (a) ~~Three hundred million dollars (\$300,000,000)~~ *One hundred*
2 *eighty-five million dollars (\$185,000,000)* shall be available to the
3 Department of Conservation's Regional Forest and Fire Capacity
4 Program to increase regional capacity to prioritize, develop, and
5 implement projects that improve forest health and fire resilience,
6 implement community fire preparedness demonstration projects,
7 facilitate greenhouse gas emissions reductions, and increase carbon
8 sequestration in forests and other landscapes across regions and
9 throughout the state. The funding shall be allocated based, to the
10 extent feasible, on the Wildfire and Forest Resilience Action Plan.

11 (b) ~~Five hundred million dollars (\$500,000,000)~~ *One hundred*
12 *seventy million dollars (\$170,000,000)* shall be available to
13 implement regional ~~strategies~~, *projects*, including, but not limited
14 to, ~~strategies~~ *landscape-scale projects* developed by forest
15 collaboratives as defined in Section ~~4810~~ *or 4810*, *projects*
16 *developed by* regional entities as defined in Section ~~4208~~ *4208*,
17 *and projects that implement strategies developed by state*
18 *conservancies* through block grants and direct appropriations by
19 the Legislature.

20 (c) ~~Three hundred million dollars (\$300,000,000)~~ *One hundred*
21 *seventy-five million dollars (\$175,000,000)* shall be available to
22 the Department of Forestry and Fire ~~Protection~~ *Protection's Forest*
23 *Health Program* for long-term forest health projects, including
24 improved forest management, prescribed fire, *prescribed grazing*,
25 cultural fire, forest watershed restoration, *reforestation, upper*
26 *watershed, riparian, and mountain meadow restoration*, and
27 activities that promote long-term carbon storage and sequestration.
28 *Funds may be used for tribal wildfire resilience grants.*

29 (d) ~~Five hundred million dollars (\$500,000,000)~~ *One hundred*
30 *eighty-five million dollars (\$185,000,000)* shall be available to the
31 Department of Forestry and Fire Protection for local fire prevention
32 grants consistent with Article 2.5 (commencing with Section 4124)
33 of Chapter 1 of Part 2 of Division 4 and for grants to conduct
34 workforce development for fire prevention and wildfire resiliency
35 work. *Workforce development grants may include, but are not*
36 *limited to, the construction of designated housing for wildfire*
37 *prevention workers.*

38 (e) Twenty-five million dollars (\$25,000,000) shall be available
39 to the Department of Forestry and Fire Protection for the creation
40 *or expansion of a prescribed fire training center consistent with*

~~the proposal developed pursuant to Section 4477. fire training center.~~

(f) ~~Five—Two~~ hundred million dollars ~~—(\$500,000,000) (\$200,000,000)~~ shall be available ~~for to the Natural Resources Agency and the Department of Parks and Recreation for forest health and watershed improvement projects in forests and other habitats, including, but not limited to, redwoods, conifers, oak woodlands, mountain meadows, chaparral, and coastal forests. Projects shall involve the restoration of natural ecosystem functions in very high and high fire hazard areas and provide multiple benefits, including, but not limited to, prescribed fire, cultural fire, habitat protection, fuel reduction, watershed protection, carbon sequestration, protection of older fire-resistant trees, or improved forest health. The Natural Resources Agency shall give preference to projects that include matching funds or in-kind work, as determined appropriate, from beneficiaries of the watershed that may include, but are not limited to, water districts, public utilities, local agencies, or private users. The Natural Resources Agency shall ensure long-term benefits for projects funded pursuant to this subdivision, including through an ongoing commitment to future maintenance and a commitment to long-term forest resilience that reduces fire risk. high, high, and moderate fire hazard areas and may include prescribed fire, cultural fire, environmentally sensitive vegetation management, land protection, science-based fuel reduction, watershed protection, carbon sequestration, protection of older fire-resistant trees, or improved forest health.~~

(g) ~~One hundred—Fifty~~ million dollars ~~—(\$100,000,000) (\$50,000,000)~~ shall be available ~~for grants to conduct fuel reduction, structure hardening, create defensible space, reforestation, and or targeted acquisitions to improve forest health and fire resilience on state-owned lands. resilience.~~

(h) ~~Seventy-five million dollars (\$75,000,000)—Thirty-three million five hundred thousand dollars (\$33,500,000)~~ shall be available to the Sierra Nevada Conservancy for watershed improvement, forest health, biomass utilization, ~~and forest restoration workforce development. At least 50 percent of the funds made available by this subdivision shall be available to the Sierra Nevada Watershed Improvement Program created by Section 33345.1: chaparral and forest restoration, and workforce development that addresses needs related to this subdivision and~~

1 *is designed to create career pathways for individuals from*
2 *disadvantaged communities, severely disadvantaged communities,*
3 *or vulnerable populations.*

4 (i) ~~Fifty million dollars (\$50,000,000)~~ *Twenty-five million five*
5 *hundred thousand dollars (\$25,500,000)* shall be available to the
6 California Tahoe Conservancy for watershed improvement, forest
7 health, biomass utilization, ~~and forest restoration workforce~~
8 ~~development.~~ *chaparral and forest restoration, and workforce*
9 *development that addresses needs related to this subdivision and*
10 *is designed to create career pathways for individuals from*
11 *disadvantaged communities, severely disadvantaged communities,*
12 *or vulnerable populations.*

13 (j) ~~Seventy-five million dollars (\$75,000,000)~~ *Thirty-three*
14 *million five hundred thousand dollars (\$33,500,000)* shall be
15 available to the Santa Monica Mountains Conservancy for
16 watershed improvement, ~~fire wildfire~~ resilience, chaparral and
17 forest restoration, and ~~restoration workforce development.~~
18 *development that addresses needs related to this subdivision and*
19 *is designed to create career pathways for individuals from*
20 *disadvantaged communities, severely disadvantaged communities,*
21 *or vulnerable populations.*

22 (k) ~~Seventy-five million dollars (\$75,000,000)~~ *Thirty-three*
23 *million five hundred thousand dollars (\$33,500,000)* shall be
24 available to the State Coastal Conservancy for watershed
25 improvement, ~~fire wildfire~~ resilience, ~~forest health, and restoration~~
26 ~~workforce development.~~ *chaparral and forest restoration, and*
27 *workforce development that addresses needs related to this*
28 *subdivision and is designed to create career pathways for*
29 *individuals from disadvantaged communities, severely*
30 *disadvantaged communities, or vulnerable populations.*

31 (l) *Thirty-three million five hundred thousand dollars*
32 *(\$33,500,000)* shall be available to the San Gabriel and Lower
33 Los Angeles Rivers and Mountains Conservancy for watershed
34 improvement, wildfire resilience, chaparral and forest restoration,
35 and workforce development that addresses needs related to this
36 subdivision and is designed to create career pathways for
37 individuals from disadvantaged communities, severely
38 disadvantaged communities, or vulnerable populations.

39 (m) *Twenty-five million five hundred thousand dollars*
40 *(\$25,500,000)* shall be available to the San Diego Rivers

1 *Conservancy for watershed improvement, wildfire resilience,*
2 *chaparral and forest restoration, and workforce development that*
3 *addresses needs related to this subdivision and is designed to*
4 *create career pathways for individuals from disadvantaged*
5 *communities, severely disadvantaged communities, or vulnerable*
6 *populations.*

7 *(n) Fifteen million dollars (\$15,000,000) shall be available to*
8 *the Wildfire Conservancy to improve firefighter health and safety,*
9 *advance fire attack effectiveness, and promote community*
10 *resilience and awareness.*

11 *(o) Fifteen million dollars (\$15,000,000) shall be available to*
12 *the California Fire Foundation to support vegetation mitigation*
13 *and fuels reduction projects, public education and outreach,*
14 *personal protective equipment, specialized firefighting equipment,*
15 *and firefighter health and safety.*

16 91530. Of the funds made available by Section 91500, ~~one~~
17 ~~hundred fifty million dollars (\$150,000,000)~~ *fifty million dollars*
18 *(\$50,000,000) shall be available, upon appropriation by the*
19 *Legislature, to the State Air Resources Board, in consultation with*
20 *the Natural Resources Agency and the Department of Forestry and*
21 *Fire Protection, to incentivize new Department of Conservation*
22 *or State Energy Resources Conservation and Development*
23 *Commission for projects in California that provide long-term capital*
24 *infrastructure to convert use forest and other vegetative waste*
25 *removed for wildfire mitigation to for noncombustible uses that*
26 *maximize reductions in greenhouse gas emissions, provide local*
27 *air quality benefits, and increase local community resilience against*
28 *climate change impacts.*

29 ~~91540. Of the funds made available by Section 91500,~~
30 ~~seventy-five million dollars (\$75,000,000) shall be available, upon~~
31 ~~appropriation by the Legislature, to the Department of Forestry~~
32 ~~and Fire Protection to enhance California's fire prevention, fuel~~
33 ~~management, and fire response, as follows:~~

34 ~~(a) Ten million dollars (\$10,000,000) shall be available to~~
35 ~~improve water quality at the Department of Forestry and Fire~~
36 ~~Protection facilities to enhance safe human use and consumption.~~

37 ~~(b) Twenty million dollars (\$20,000,000) shall be available to~~
38 ~~upgrade existing infrastructure and for new Department of Forestry~~
39 ~~and Fire Protection facilities for suppression and fuel reduction~~
40 ~~crews.~~

1 ~~(c) Twenty million dollars (\$20,000,000) shall be available for~~
2 ~~the purchase of Type 3 engines and related equipment to be used~~
3 ~~for fire suppression and fuel reduction.~~

4 ~~(d) Five million dollars (\$5,000,000) shall be available to~~
5 ~~enhance the Department of Forestry and Fire Protection's~~
6 ~~communications centers and mobile communications, including~~
7 ~~the capacity to provide culturally relevant and multilingual~~
8 ~~communication services.~~

9 ~~(e) Twenty million dollars (\$20,000,000) shall be available to~~
10 ~~the Department of Forestry and Fire Protection for grants to assist~~
11 ~~local agencies with equipment for wildland firefighting, fire~~
12 ~~prevention, and fuel management.~~

13 *91535. Of the funds made available by Section 91500,*
14 *twenty-five million dollars (\$25,000,000) shall be available, upon*
15 *appropriation by the Legislature, to the Department of Forestry*
16 *and Fire Protection for technologies that improve detection and*
17 *assessment of new fire ignitions.*

18 *91540. (a) Of the funds made available by Section 91500,*
19 *thirty-five million dollars (\$35,000,000) shall be available, upon*
20 *appropriation by the Legislature, for uses to reduce wildfire risk*
21 *related to electricity transmission.*

22 *(b) The proportion of any asset funded pursuant to this section*
23 *shall be funded without return on equity for the lifetime of the*
24 *proportion of that asset that would have otherwise been borne by*
25 *ratepayers.*

26 *(c) The proportion of any projects funded pursuant to this*
27 *section shall be excluded from the ratebase, and no costs may be*
28 *collected from ratepayers.*

29 *91545. (a) Of the funds made available by Section 91500, fifty*
30 *million dollars (\$50,000,000) shall be available, upon*
31 *appropriation by the Legislature, to the California Conservation*
32 *Corps or certified community conservation corps, as defined in*
33 *Section 14507.5, and nonprofit workforce organizations for*
34 *demonstrated jobs projects, including either of the following:*

35 *(1) Projects to mitigate unemployment and assist the state with*
36 *the implementation of critical natural resources, transportation,*
37 *energy, and housing infrastructure to promote climate resilience.*

38 *(2) Projects to prepare for, prevent, respond to, and rehabilitate*
39 *following natural disasters, declared emergencies, or*
40 *climate-related impacts to communities.*

1 (b) At least 60 percent of the amount available pursuant to
2 subdivision (a) shall be available to certified community
3 conservation corps, as defined in Section 14507.5.

4 (c) Eligible workforce organizations include nonprofits, local
5 agencies, and joint powers authorities that have programs that
6 provide park and conservation employment training.

7 (d) The California Conservation Corps may expend the funds
8 made available as grants to certified community conservation
9 corps for purposes specified in this section.

10 91550. Projects funded pursuant to this chapter shall be
11 consistent with the policies and guidelines established by the
12 California Wildfire and Forest Resilience Action Plan, and by the
13 Natural Resources Agency and the Department of Forestry and
14 Fire Protection, if applicable.

15
16 CHAPTER 4. COASTAL RESILIENCE
17

18 92000. The sum of ~~two billion dollars (\$2,000,000,000)~~ *one*
19 *billion two hundred million dollars (\$1,200,000,000)* shall be
20 available, upon appropriation by the Legislature, to increase coastal
21 and ocean resiliency and to protect coastal lands, waters,
22 communities, natural resources, and urban waterfronts from *sea*
23 *level rise and other* climate impacts. Eligible projects include, but
24 are not limited to, projects to restore coastal wetlands and projects
25 to address sea level rise.

26 92010. (a) Of the funds made available by Section 92000, ~~five~~
27 ~~hundred million dollars (\$500,000,000)~~ *four hundred fifteen million*
28 *dollars (\$415,000,000)* shall be available, upon appropriation by
29 the Legislature, for projects identified by the State Coastal
30 Conservancy for coastal resilience projects and ~~programs identified~~
31 ~~in the 2023–2027 Strategic Plan.~~ *programs, including, but not*
32 *limited to, grants and expenditures to protect, restore, and increase*
33 *the resilience of beaches, bays, coastal dunes, wetlands, coastal*
34 *forests, watersheds, trails, and public access facilities.* The funds
35 made available pursuant to this section may be allocated to any of
36 the following:

37 (a)

38 (1) Grants through the Climate Ready Program pursuant to
39 Section 31113.

40 (b)

(2) Projects to protect coastal lands and restore habitats, including subtidal habitats, wetlands, riparian areas, redwood forests, *grasslands*, oak woodlands, and other important wildlife habitats, including projects to protect and restore healthy sea otter populations.

(e)

(3) Natural infrastructure projects that use existing natural areas to minimize coastal flooding, erosion, and runoff.

(d)

(4) Projects to restore coastal land for public uses on surplus land for formerly fossil-fueled powerplants.

~~(e) Projects that are consistent with the San Francisco Bay Restoration Authority Act (Title 7.25 (commencing with Section 66700) of the Government Code), including, but not limited to, projects that address sea level rise, flood management, and wetland restoration.~~

(f)

(5) Projects for purposes of the San Francisco Bay Area Conservancy Program established pursuant to Chapter 4.5 (commencing with Section 31160) of Division 21.

(g)

(6) Lower cost coastal accommodation grants consistent with the Lower Cost Coastal Accommodations Program established pursuant to Section 31412.

(7) Projects that are consistent with the San Francisco Bay Restoration Authority Act (Title 7.25 (commencing with Section 66700) of the Government Code).

(b) Of the funds made available pursuant to subdivision (a), not less than eighty-five million dollars (\$85,000,000) shall be available, upon appropriation by the Legislature, for projects that are consistent with the San Francisco Bay Restoration Authority Act (Title 7.25 (commencing with Section 66700) of the Government Code) or the San Francisco Bay Area Conservancy Program established pursuant to Chapter 4.5 (commencing with Section 31160) of Division 21, including, but not limited to, projects that address sea level rise, flood management, and wetland restoration.

92015. Of the funds made available by Section 92000, ~~five hundred million dollars (\$500,000,000)~~ *three hundred fifty million dollars (\$350,000,000)* shall be available, upon appropriation by

the Legislature, to the State Coastal Conservancy for the purpose of coastal and combined flood management projects and activities for developed shoreline areas, including areas with critical community infrastructure, ~~including~~ *including, but not limited to*, transportation and port infrastructure at risk of current flooding and flooding due to sea level rise. Funds shall be allocated to ~~multibenefit~~ *multiple-benefit* projects that improve public safety, including shoreline resilience projects designed to address flooding, sea level rise, and shoreline stability that include engineering with nature or nature-based features. These funds shall be available to local agencies as matching funds for federally funded coastal flood risk management and flood risk management projects.

92020. Of the funds made available by Section 92000, ~~three hundred twenty-five million dollars (\$325,000,000)~~ *one hundred thirty-five million dollars (\$135,000,000)* shall be available, upon appropriation by the Legislature, for deposit into the California Ocean Protection Trust Fund for grants to increase resilience from the impacts of climate change. Preference shall be given to projects that conserve, protect, and restore marine wildlife and healthy ocean and coastal ecosystems, including, but not limited to, estuarine habitat, kelp forests, eelgrass meadows, *and* native oyster beds, or that maintain the state's system of marine protected areas, and support sustainable fisheries. ~~Funding may be used to purchase and install ocean current mapping infrastructure and new maritime research infrastructure to reduce emissions. Funding may be used to purchase and install ocean current mapping infrastructure and new maritime research infrastructure to reduce emissions. The funds made available pursuant to this section may be used to establish a program with acre-based targets to advance habitat recovery projects that will contribute to protecting and restoring kelp forests, eelgrass meadows, and native oyster beds.~~

92030. Of the funds made available by Section 92000, ~~two hundred fifty million dollars (\$250,000,000)~~ *seventy-five million dollars (\$75,000,000)* shall be available, upon appropriation by the Legislature, to implement the California Sea Level Rise Mitigation and Adaptation Act of 2021 (Division 20.6.5 (commencing with Section 30970)).

92040. Of the funds made available by Section 92000, ~~two hundred fifty million dollars (\$250,000,000)~~ *fifty million dollars (\$50,000,000)* shall be available, upon appropriation by the

1 Legislature, to the Department of Parks and Recreation to
2 implement the Sea Level Rise Adaptation Strategy to address the
3 impacts of sea level rise in coastal state parks, support continued
4 access and recreational opportunities, and protect coastal natural
5 and cultural resources.

6 ~~92050. Of the funds made available by Section 92000,~~
7 ~~twenty-five million dollars (\$25,000,000) shall be available, upon~~
8 ~~appropriation by the Legislature, for projects identified by the~~
9 ~~Natural Resource Agency and the Invasive Species Council of~~
10 ~~California to implement projects to protect and restore island~~
11 ~~ecosystems by mitigating the threat of island invasive species and~~
12 ~~advancing biosecurity initiatives.~~

13 ~~92060. Of the funds made available by Section 92000,~~
14 ~~twenty-five million dollars (\$25,000,000) shall be available, upon~~
15 ~~appropriation by the Legislature, for projects identified by the~~
16 ~~Department of Fish and Wildlife to advance climate-ready fisheries~~
17 ~~management by expanding opportunities for experimentation and~~
18 ~~adaptive cooperative management, modernizing electronic fisheries~~
19 ~~data management systems, and increasing the use of electronic~~
20 ~~technologies to facilitate more nimble decisionmaking and timely~~
21 ~~management responses under changing ocean conditions.~~

22 ~~92070. Of the funds made available by Section 92000,~~
23 ~~twenty-five million dollars (\$25,000,000) shall be available, upon~~
24 ~~appropriation by the Legislature, for projects identified by the~~
25 ~~Department of Fish and Wildlife to support the restoration and~~
26 ~~management of kelp ecosystems. Funds shall be used to support~~
27 ~~ongoing research, restoration, and monitoring activities of kelp~~
28 ~~ecosystems and for the implementation of an adaptive kelp~~
29 ~~management plan.~~

30 *92050. Of the funds made available by Section 92000,*
31 *seventy-five million dollars (\$75,000,000) shall be available, upon*
32 *appropriation by the Legislature, to the Natural Resources Agency*
33 *and the Department of Fish and Wildlife for all of the following:*

34 *(a) To protect and restore island ecosystems by mitigating the*
35 *threat of island invasive species and advancing biosecurity*
36 *initiatives.*

37 *(b) To advance climate-ready fisheries management by*
38 *expanding opportunities for experimentation and adaptive*
39 *cooperative management, modernizing electronic fisheries data*
40 *management systems, and increasing the use of electronic*

technologies to facilitate more nimble decisionmaking and timely management responses under changing ocean conditions.

(c) To support the restoration and management of kelp ecosystems.

~~92080.~~

~~92060. Of the funds made available by Section 92000, one hundred million dollars (\$100,000,000) seventy-five million dollars (\$75,000,000) shall be allocated, upon appropriation by the Legislature, to the State Coastal Conservancy for grants or expenditures to remove or upgrade outdated or obsolete dams and for related water infrastructure. Projects may also install infrastructure to increase climate resilience, enhance sediment supply, improve wildlife and fish passage, and modernize related water infrastructure, including related planning, monitoring, permitting, habitat restoration, and recreational improvements. Funds for planning, monitoring, and implementation of projects pursuant to this section may exceed 10 percent of the funds allocated if the State Coastal Conservancy determines there is a need for the additional funding.~~

92070. Of the funds made available by Section 92000, twenty-five million dollars (\$25,000,000) shall be available, upon appropriation by the Legislature, to the Department of Fish and Wildlife for hatchery upgrades and expansions and for new conservation hatcheries that increase fish production and include the latest technologies to support species conservation and reintroduction efforts necessary to support genetically diverse populations of Central Valley Chinook Salmon.

~~92090.~~

~~92080. Projects funded pursuant to this chapter shall be consistent with the policies and guidelines established by the California Coastal Commission, the Department of Parks and Recreation, the Ocean Protection Council, the State Lands Commission, the San Francisco Bay Conservation and Development Commission, and the State Coastal Conservancy, if applicable.~~

CHAPTER 5. EXTREME HEAT MITIGATION

~~92500. The sum of five hundred million dollars (\$500,000,000)~~
four hundred fifty million dollars (\$450,000,000) shall be available,

1 upon appropriation by the Legislature, to *respond to severe weather*
2 *and increasing temperatures, and address extreme heat and*
3 *extreme heat events in communities. Priority shall be given to*
4 *projects that provide meaningful direct benefits to disadvantaged*
5 *communities, severely disadvantaged communities, and vulnerable*
6 *populations.*

7 92510. Of the funds made available by Section 92500, ~~one~~
8 ~~hundred million dollars (\$100,000,000)~~ *fifty million dollars*
9 *(\$50,000,000)* shall be available, upon appropriation by the
10 Legislature, to the Office of Planning and Research's Extreme
11 Heat and Community Resilience Program to fund projects ~~to that~~
12 ~~reduce the impact of extreme heat, reduce the urban heat island~~
13 ~~effect and other extreme heat impacts from climate change. Projects~~
14 ~~shall benefit disadvantaged communities and vulnerable~~
15 ~~populations.~~ *effect, and build community resilience in order to*
16 *strengthen communities that are vulnerable to the extreme heat*
17 *impacts of climate change.*

18 92520. ~~Of the funds made available by Section 92500, one~~
19 ~~hundred fifty million dollars (\$150,000,000) shall be available;~~
20 ~~upon appropriation by the Legislature, to the Natural Resources~~
21 ~~Agency to provide funds to state agencies identified in the extreme~~
22 ~~heat action plan, and any subsequent updates, in order to implement~~
23 ~~the plan and mitigate the impacts of extreme heat.~~

24 92530. ~~Of the funds made available by Section 92500, fifty~~
25 ~~million dollars (\$50,000,000) shall be available, upon appropriation~~
26 ~~by the Legislature, to the Office of Planning and Research's~~
27 ~~Adaptation Planning Grant Program for regional climate resilience~~
28 ~~planning and demonstration projects.~~

29 92540.

30 92520. Of the funds made available by Section 92500, ~~fifty~~
31 ~~million dollars (\$50,000,000)~~ *one hundred fifty million dollars*
32 *(\$150,000,000)* shall be available, upon appropriation by the
33 Legislature, to the Strategic Growth Council's ~~Community~~
34 ~~Resilience Centers Program for the construction or retrofit of~~
35 ~~facilities to serve as community resilience centers that mitigate~~
36 ~~the public health impacts of extreme heat and other emergency~~
37 ~~situations exacerbated by climate change. Projects shall benefit~~
38 ~~disadvantaged communities and vulnerable populations.~~
39 *Transformative Climate Communities Program established*
40 *pursuant to Section 75240 for projects that provide local economic,*

1 *environmental, and health benefits, and improve the resilience of*
2 *priority populations, as defined by the Transformative Climate*
3 *Communities Program guidelines.*

4 ~~92550.~~

5 92530. Of the funds made available by Section 92500, one
6 hundred million dollars (\$100,000,000) shall be available, upon
7 appropriation by the Legislature, to the Natural Resources Agency
8 for competitive grants for urban greening. ~~Projects shall benefit~~
9 ~~disadvantaged communities and vulnerable populations.~~ These
10 funds shall support projects that mitigate the urban heat island
11 effect, rising temperatures, and extreme heat impacts. Eligible
12 projects may include, but are not limited to, *the creation and*
13 *expansion of green streets and alleyways, and* investments that
14 support an expanded urban greening program that supports the
15 creation of green recreational parks *and green schoolyards* in
16 park-poor communities.

17 ~~92560.~~

18 92540. Of the funds made available by Section 92500, ~~fifty~~
19 ~~million dollars (\$50,000,000)~~ *fifty million dollars (\$50,000,000)*
20 shall be available, upon appropriation by the Legislature, to the
21 Department of Forestry and Fire Protection to protect or augment
22 California's urban forests pursuant to Section 4799.12. Projects
23 shall contribute to mitigating the urban heat island effect and
24 extreme heat impacts. ~~Projects shall benefit disadvantaged~~
25 ~~communities and vulnerable populations.~~

26 92550. (a) *Of the funds made available by Section 92500, sixty*
27 *million dollars (\$60,000,000) shall be available, upon*
28 *appropriation by the Legislature, to the Office of Emergency*
29 *Services and the Strategic Growth Council for competitive grants*
30 *for the creation of strategically located community resilience*
31 *centers across diverse regions of the state at eligible community*
32 *facilities. These grants shall be awarded to eligible community*
33 *facilities that model integrated delivery of emergency response*
34 *services during disruptions, including zero-emission backup power,*
35 *drinking water, clean air, cooling, food storage, shelter,*
36 *telecommunications and broadband services, economic assistance,*
37 *accommodation of pets, and other health protection measures and*
38 *emergency resources during a disaster, state of emergency, local*
39 *emergency, or deenergization event. Grants shall be prioritized*
40 *to proposed centers that demonstrate involvement of*

1 community-based organizations and community residents within
2 governance and decisionmaking processes.

3 (b) The Office of Emergency Services and the Strategic Growth
4 Council shall coordinate with the Department of Food and
5 Agriculture to ensure there is no duplication with funding awarded
6 under Section 92560.

7 (c) For purposes of this section, the following definitions apply:

8 (1) “Deenergization event” means a preventative measure to
9 deenergize all, or a portion, of an electric generation, distribution,
10 or transmission system when the electricity provider reasonably
11 believes there is an imminent and significant risk that strong winds,
12 or other extreme and potentially dangerous weather events,
13 increase the probability of a wildfire.

14 (2) “Eligible community facilities” include, but are not limited
15 to, senior and youth centers, park and recreation sites, libraries,
16 health clinics, hospitals, schools, town halls, food banks, homeless
17 shelters, childcare facilities, community centers, community
18 nonprofit facilities providing essential services, places of worship,
19 mobile sites, and fairgrounds.

20 92560. Of the funds made available by Section 92500, forty
21 million dollars (\$40,000,000) shall be available, upon
22 appropriation by the Legislature, to the Department of Food and
23 Agriculture for grants to fairgrounds operated by the network of
24 California fairs for modifications or upgrades that do one or both
25 of the following activities:

26 (a) Enhance the ability of those facilities to serve as multirole
27 community, staging, and evacuation centers to provide community
28 resilience benefits during a disaster, state of emergency, local
29 emergency, or deenergization event.

30 (b) Deploy communications and broadband infrastructure at
31 those facilities to improve their capability to serve as multirole
32 community, staging, and evacuation centers and enhance local
33 telecommunications service.

34 ~~92570. (a) At least 10 percent of the funds available pursuant~~
35 ~~to this chapter shall be allocated for grants that provide outreach~~
36 ~~and technical assistance that directly benefit disadvantaged~~
37 ~~communities and vulnerable populations. An eligible applicant is~~
38 ~~a nonprofit organization, technical assistance provider, or tribe.~~

39 ~~(b)–~~

92570. Projects funded pursuant to this chapter shall be consistent with the policies and guidelines established by the Protecting Californians From Extreme Heat: A State Action Plan to Build Community Resilience, and the Office of Planning and Research's Extreme Heat and Community Resilience Program, if applicable.

CHAPTER 6. PROTECT BIODIVERSITY AND ACCELERATING
NATURE-BASED CLIMATE SOLUTIONS

93000. The sum of ~~two billion dollars (\$2,000,000,000)~~ *one billion two hundred million dollars (\$1,200,000,000)* shall be available, upon appropriation by the Legislature, for the protection of California's biodiversity and to protect nature and restore landscape health to achieve California's climate change goals.

93010. (a) Of the funds made available by Section 93000, ~~one billion dollars (\$1,000,000,000)~~ *eight hundred seventy million dollars (\$870,000,000)* shall be available, upon appropriation by the Legislature, to the Wildlife Conservation Board for ~~existing~~ grant programs to protect and enhance fish and wildlife *resources* and habitat and achieve the state's ~~biodiversity~~ *biodiversity, public access*, and conservation goals. Eligible programs include, but are not limited to, any of the following:

- (a)
- (1) Land acquisition.
- (b)
- (2) Habitat enhancement and restoration.
- (c)
- (3) Rangeland, grazing land, and grassland protection.
- (d)
- (4) Inland wetland conservation.
- (e)
- (5) Ecosystem restoration on agricultural lands.
- (f)
- (6) Climate adaptation and resiliency.
- (g)
- (7) Monarch butterfly and pollinator rescue.
- (8) *Desert conservation.*
- (9) *Oak woodland conservation.*
- (h)

(10) Purposes of reimbursing the General Fund, pursuant to the Natural Heritage Preservation Tax Credit Act of 2000 (Division 28 (commencing with Section 37000)).

(b) Funding made available pursuant to subdivision (a) shall not be used to reduce or offset environmental mitigation or compliance obligations otherwise required, but may be used as part of a funding partnership to enhance, expand, or augment conservation efforts required by mitigation. Nothing in this subdivision authorizes the expenditure of bond funds for voluntary agreements as described in Section 80114.

93020. (a) Of the funds made available by Section 93000, ~~five hundred million dollars (\$500,000,000)~~ *three hundred twenty million dollars (\$320,000,000)* shall be available, upon appropriation by the Legislature, to reduce the risks of climate change impacts upon communities, fish and wildlife, and natural ~~resources~~ *resources, and increase public access, and shall be* allocated in accordance with the following schedule:

(a)
(1) Baldwin Hills Conservancy, ~~fifty million dollars (\$50,000,000)~~ *forty-eight million dollars (\$48,000,000)*.

(b)
(2) California Tahoe Conservancy, ~~fifty million dollars (\$50,000,000)~~ *twenty-nine million dollars (\$29,000,000)*.

(c)
(3) Coachella Valley Mountains Conservancy, ~~twenty-five million dollars (\$25,000,000)~~ *eleven million dollars (\$11,000,000)*.

(d)
(4) Sacramento-San Joaquin Delta Conservancy, ~~fifty million dollars (\$50,000,000)~~ *twenty-nine million dollars (\$29,000,000)*.

(e)
(5) San Diego River Conservancy, ~~seventy-five million dollars (\$75,000,000)~~ *forty-eight million dollars (\$48,000,000)*.

(f)
(6) San Gabriel and Lower Los Angeles Rivers and Mountains Conservancy, ~~seventy-five million dollars (\$75,000,000)~~ *forty-eight million dollars (\$48,000,000)*.

(g)
(7) San Joaquin River Conservancy, ~~twenty-five million dollars (\$25,000,000)~~ *eleven million dollars (\$11,000,000)*.

(h)

(8) Santa Monica Mountains Conservancy, ~~seventy-five million dollars (\$75,000,000):~~ *forty-eight million dollars (\$48,000,000).*

(i)

(9) Sierra Nevada Conservancy, ~~seventy-five million dollars (\$75,000,000):~~ *forty-eight million dollars (\$48,000,000).*

(b) *Up to 5 percent of the funds made available pursuant to this section may be allocated for community access projects that benefit disadvantaged communities, severely disadvantaged communities, and vulnerable populations and that include, but are not limited to, the following:*

(1) *Transportation.*

(2) *Physical activity programming.*

(3) *Resource interpretation.*

(4) *Multilingual translation.*

(5) *Natural science.*

(6) *Workforce development and career pathways.*

(7) *Education.*

(8) *Communication related to water, parks, climate, coastal protection, and other outdoor pursuits.*

93030. (a) ~~Of the funds made available by Section 93000, four hundred million dollars (\$400,000,000) shall be available, upon appropriation by the Legislature, to the Natural Resources Agency and its departments, boards, and conservancies to protect and restore biodiversity, expand access to nature, and mitigate and build resilience to climate change using nature-based solutions, whenever possible. Eligible projects shall contribute to the goals established in the Pathways to 30x30 document, and biodiversity strategies established pursuant to Executive Order No. N-82-20. Eligible projects include any of the following:~~

~~(1) Projects to accelerate regionally led conservation.~~

~~(2) Strategic land acquisitions and voluntary conservation easements.~~

~~(3) Projects to enhance or restore the fish and wildlife habitat on public lands and coastal waters.~~

~~(4) Tribal nature-based solutions.~~

~~(5) Floodplain and wetland restoration.~~

~~(6) Projects to improve forest and chaparral habitat.~~

~~(7) Reintroduction of migratory salmon to historic habitats and climate refugia.~~

1 ~~(b) Of the funds made available by subdivision (a), two hundred~~
2 ~~million dollars (\$200,000,000) shall be available for projects to~~
3 ~~improve habitat connectivity.~~

4 ~~(c) At least 10 percent of the funds made available by this~~
5 ~~section shall be available to provide grants for the purchase of~~
6 ~~facilities, equipment, and software and for projects and technical~~
7 ~~assistance by scientific academic institutions and nonprofits to~~
8 ~~better map, catalog, and understand the biodiversity in strategic~~
9 ~~areas of the state to further the purposes of this chapter.~~

10 ~~93040. Of the funds made available by Section 93000, fifty~~
11 ~~million dollars (\$50,000,000) shall be available, upon appropriation~~
12 ~~by the Legislature, to the Department of Fish and Wildlife for~~
13 ~~nature-based solutions that improve the climate resilience of fish~~
14 ~~and wildlife habitat and improve fish and wildlife passage.~~

15 ~~93050. Of the funds made available by Section 93000, fifty~~
16 ~~million dollars (\$50,000,000) shall be available, upon appropriation~~
17 ~~by the Legislature, to the Department of Fish and Wildlife to~~
18 ~~accredited California zoos and aquariums to advance conservation~~
19 ~~of California's species biodiversity to help ensure the viability and~~
20 ~~recovery of California's endangered and declining species,~~
21 ~~including, but not limited to, wildlife health monitoring and~~
22 ~~biodiversity reserve management.~~

23 ~~93030. Of the funds made available by Section 93010, one~~
24 ~~hundred eighty million dollars (\$180,000,000) shall be available,~~
25 ~~upon appropriation by the Legislature, to the Wildlife Conservation~~
26 ~~Board for projects to improve habitat connectivity and establish~~
27 ~~wildlife crossings and corridors, including eighty million dollars~~
28 ~~(\$80,000,000) to establish the San Andreas Corridor Program for~~
29 ~~the protection and restoration of wildlife corridors along the inner~~
30 ~~Coast Ranges and the San Andreas Fault.~~

31 ~~93040. Of the funds made available by Section 93000, ten~~
32 ~~million dollars (\$10,000,000) shall be available, upon~~
33 ~~appropriation by the Legislature, to the Natural Resources Agency~~
34 ~~for the Tribal Nature-Based Solutions Program.~~

35 ~~93050. Of the funds made available by Section 93010, twenty~~
36 ~~two million dollars (\$22,000,000) shall be available, upon~~
37 ~~appropriation of the Legislature, to the Wildlife Conservation~~
38 ~~Board for projects for climate change adaptation improvements~~
39 ~~to protect, conserve, and restore the health and resilience of the~~
40 ~~southern Ballona Creek Watershed.~~

93060. Projects funded pursuant to this chapter shall be consistent with the policies and guidelines established by the Wildlife Conservation Board, the Pathways to 30x30 ~~document~~, *strategy*, the Natural and Working Lands Climate Smart Strategy, California’s 2022 Scoping Plan for Achieving Carbon Neutrality, and the California Climate Adaptation Strategy, if applicable.

CHAPTER 7. ~~CLIMATE-SMART AGRICULTURE FOR~~
~~SUSTAINABILITY AND RESILIENCY~~ *SMART, SUSTAINABLE, AND*
RESILIENT FARMS, RANCHES, AND WORKING LANDS

93500. The sum of ~~three hundred million dollars~~ *three hundred million dollars (\$300,000,000)* shall be available, upon appropriation by the Legislature, for improving climate resilience *and sustainability* of agricultural lands.

93510. Of the funds made available by Section 93500, ~~one hundred fifty million dollars (\$150,000,000)~~ *one hundred five million dollars (\$105,000,000)* shall be available, upon appropriation by the Legislature, to the Department of Food and Agriculture’s Office of Environmental Farming and Innovation for improvements in climate resilience of agricultural lands and ecosystem health and allocated to eligible projects as follows:

(a) ~~(1) Fifty million dollars (\$50,000,000) shall be available to the healthy soils grant program to promote practices on farms and ranches that improve soil health, accelerate atmospheric carbon removal or soil carbon sequestration, enhance groundwater recharge, and improve habitat.~~

~~(2) At least 40 percent of the funds allocated pursuant to this subdivision shall be allocated to projects that provide direct and meaningful benefits to socially disadvantaged farmers and ranchers.~~

~~(b) (1) Twenty-five million dollars (\$25,000,000) shall be available for the State Water Efficiency and Enhancement Program to promote onfarm water use efficiency and reduce emissions of greenhouse gases.~~

~~(2) At least 40 percent of the funds allocated pursuant to this subdivision shall be allocated to projects that provide direct and meaningful benefits to socially disadvantaged farmers and ranchers.~~

~~(c) Twenty-five million dollars (\$25,000,000) shall be available to the pollinator habitat program.~~

~~(d) Fifty million dollars (\$50,000,000) shall be available to establish the Environmental Farming Incentive Program to address natural resource concerns on agricultural lands. Eligible projects include, but are not limited to, improved water and air quality, conserved groundwater and surface water, improved or created wildlife habitat, wildlife-friendly farming and ranching practices, drought and climate resilience, and other conservation practices.~~

(a) Sixty-five million dollars (\$65,000,000) shall be available for grants to promote practices on farms and ranches that improve soil health, or accelerate atmospheric carbon removal or soil carbon sequestration.

(b) Forty million dollars (\$40,000,000) shall be available for the State Water Efficiency and Enhancement Program to promote onfarm water use efficiency with a focus on multiple-benefit projects that improve resilience to climate change and save water on California agricultural operations.

(c) Funds allocated pursuant to this section shall be allocated to projects that provide meaningful and direct benefits to socially disadvantaged farmers and ranchers.

93520. Of the funds made available by Section 93500, ~~twenty-five million dollars (\$25,000,000)~~ *twenty million dollars (\$20,000,000)* shall, upon appropriation by the Legislature, be deposited in the Invasive Species Account established pursuant to Section 7706 of the Food and Agricultural Code for purposes of funding invasive species projects and activities recommended by the Invasive Species Council of California. Preference shall be given to projects that restore and protect biodiversity and ecosystem health. *Consideration shall be given to geographic equity.*

93530. ~~Of the funds made available by Section 93500, one hundred twenty-five million dollars (\$125,000,000) shall be available, upon appropriation by the Legislature, to the Department of Conservation for projects for the protection, restoration, and enhancement of farmland and rangeland, including, but not limited to, the acquisition of fee title or easements on agricultural lands, and onfarm improvements that provide any of the following benefits:~~

~~(a) Climate resilience.~~

~~(b) Soil health.~~

~~(c) Atmospheric carbon removal.~~

~~(d) Soil carbon sequestration.~~

- 1 ~~(e) Erosion control.~~
- 2 ~~(f) Floodwater management.~~
- 3 ~~(g) Watershed restoration.~~
- 4 ~~(h) Habitat conservation.~~
- 5 ~~(i) Water quality.~~
- 6 ~~(j) Water retention.~~

7 93530. *Of the funds made available by Section 93500, fifteen*
 8 *million dollars (\$15,000,000) shall be available, upon*
 9 *appropriation by the Legislature, to the Department of*
 10 *Conservation for projects for the protection, restoration,*
 11 *conservation, and enhancement of farmland and rangeland,*
 12 *including, but not limited to, the acquisition of fee title or*
 13 *easements, that improve climate resilience, open-space soil health,*
 14 *atmospheric carbon removal, soil carbon sequestration, erosion*
 15 *control, watershed health, water quality, or water retention.*
 16 *Projects shall provide multiple benefits. In awarding funds for*
 17 *farmland and rangeland projects pursuant to this section, the*
 18 *Department of Conservation shall give preference to projects for*
 19 *small- and medium-sized farms.*

20 93540. *Of the funds made available by Section 93500, ninety*
 21 *million dollars (\$90,000,000) shall be available, upon*
 22 *appropriation by the Legislature, to the Department of Food and*
 23 *Agriculture for grants that benefit small- and medium-sized farms,*
 24 *socially disadvantaged farmers, beginning farmers or ranchers,*
 25 *and veteran farmers or ranchers, as defined, and increase the*
 26 *sustainability of agricultural infrastructure and facilities that*
 27 *support food systems, and increase market access. Funding made*
 28 *available pursuant to this section shall be allocated as follows:*

29 (a) *Twenty million dollars (\$20,000,000) shall be available for*
 30 *infrastructure related to certified mobile farmers' markets,*
 31 *including, but not limited to, a mobile farmers' market vehicle,*
 32 *refrigeration, and other equipment to comply with relevant Health*
 33 *and Safety Code sections and regulations.*

34 (b) *Twenty million dollars (\$20,000,000) shall be available to*
 35 *develop year-round infrastructure for certified farmers' markets,*
 36 *as defined in Section 47004 of the Food and Agricultural Code,*
 37 *fishermen's markets, as defined in Section 113780 of the Health*
 38 *and Safety Code, or tribe-operated or native-serving farmers'*
 39 *markets, including, but not limited to, all of the following:*

1 (1) All-weather infrastructure such as canopies and shade
2 structures, tables and seating, market stalls, restrooms and hand
3 wash stations, tent weights and tie-downs, produce washing
4 stations, barricades and bollards for traffic management and
5 pedestrian safety, bicycle parking racks, and other equipment.

6 (2) Facilities for food preparation, cooking demonstrations,
7 and other nutrition education.

8 (3) Wireless electronic benefits transfer point-of-sale terminals
9 for market managers and producers to process CalFresh
10 transactions.

11 (4) Wireless electronic benefits transfer point-of-sale terminals
12 for producers to accept the electronic cash value benefit through
13 the program designed to implement the federal WIC Farmers'
14 Market Nutrition Act of 1992 (Public Law 102-314) pursuant to
15 Section 123279 of the Health and Safety Code, or equivalent tribal
16 programs.

17 (5) Other equipment to support the seniors farmers' market
18 nutrition program, as described in Section 3007 of Title 7 of the
19 United States Code, or equivalent tribal programs.

20 (c) Twenty million dollars (\$20,000,000) shall be available for
21 urban agriculture projects that create or expand city or suburban
22 community farms or gardens, including community food producers,
23 as defined in Section 113752 of the Health and Safety Code,
24 through in-ground small plot cultivation, raised beds, mushroom
25 growing, rooftop farms, and cultivation of vacant lots and in parks.

26 (d) Fifteen million dollars (\$15,000,000) shall be available for
27 grants for regional farm equipment sharing. Preference shall be
28 given to projects and programs that benefit small- and medium-
29 sized farms and socially disadvantaged farmers and ranchers.

30 (e) Fifteen million dollars (\$15,000,000) shall be available to
31 advance tribes' food sovereignty to grow, produce, procure, and
32 distribute foods that reflect Native American culture and traditions
33 and support the development of tribal producers and vendors,
34 including, but not limited to, the following projects:

35 (1) Irrigation and water infrastructure.

36 (2) Utility and power infrastructure.

37 (3) Food processing infrastructure.

38 93550. (a) Of the funds made available by Section 93500,
39 thirty million dollars (\$30,000,000) shall be available, upon
40 appropriation by the Legislature, to the Department of

1 Conservation, in consultation with the California Agricultural
2 Land Equity Task Force at the Strategic Growth Council, to
3 improve land access and tenure for socially disadvantaged farmers
4 or ranchers, tribal producers, and beginning farmers and ranchers.

5 (b) The Department of Conservation may make low-interest
6 loans to qualified entities, which shall include land trusts, nonprofit
7 organizations, public agencies, farmer cooperatives, tribal
8 governments, or tribal entities, for the purpose of acquiring
9 agricultural lands to transfer or provide long-term leases to
10 socially disadvantaged farmers or ranchers and beginning farmers
11 and ranchers.

12 (c) Any agricultural land acquired pursuant to this section shall
13 be required to have an agricultural land conservation easement
14 before being leased or transferred, and the department may require
15 additional appropriate resale restrictions, such as affordability
16 provisions, preemptive purchase right, or shared appreciation
17 consistent with the purposes of this subdivision.

18 (d) The department shall ensure that the proceeds of future
19 resales of land continue to be used for purposes of this chapter.

20 93560. Of the funds made available by Section 93500, fifteen
21 million dollars (\$15,000,000) shall be available, upon
22 appropriation by the Legislature, to the California Vanpool
23 Authority for grants for the deployment of vanpool vehicles, clean
24 technologies, and related facilities, including, but not limited to,
25 charging and alternative fuel infrastructure, for use by low-income
26 agricultural workers.

27 93570. Of the funds made available by Section 93500, fifteen
28 million dollars (\$15,000,000) shall be available, upon
29 appropriation by the Legislature, to the State Department of
30 Education, in consultation with the Department of Food and
31 Agriculture, for purposes of providing grants to public
32 postsecondary educational institutions that are designated as
33 Agricultural Experiment Stations or Agricultural Research
34 Institutes, to develop research farms to improve climate resiliency.
35 Funding provided pursuant to this section shall not exceed one
36 million dollars (\$1,000,000) per institution and shall be constructed
37 and maintained with environmentally sustainable infrastructure
38 practices.

39 93580. Of the funds made available by Section 93500, ten
40 million dollars (\$10,000,000) shall be available, upon

1 appropriation by the Legislature, as part of the Farmworker
2 Housing Component of the Low-Income Weatherization Program
3 through the Department of Community Services and Development,
4 to low-income farmworker households for no-cost energy efficiency
5 upgrades designed to reduce greenhouse gas emissions by saving
6 energy. These energy efficiency upgrades shall include, but are
7 not limited to, insulation, central heating and cooling system
8 upgrades, lighting upgrades, and window replacement.

9 93590. For purposes of this chapter, the following definitions
10 apply:

11 (a) “Beginning farmer or rancher” means a farmer or rancher
12 who has not actively operated and managed a farm or ranch with
13 a bona fide insurable interest in a crop or livestock as an
14 owner-operator, landlord, tenant, or sharecropper for more than
15 five crop years, as determined by the United States Secretary of
16 Agriculture and as defined in Section 1502 of Title 7 of the United
17 States Code.

18 (b) “Veteran farmer or rancher” means a farmer or rancher
19 who is all of the following:

20 (1) Has served in the United States Armed Forces, as defined
21 in Section 101 of Title 38 of the United States Code.

22 (2) Meets either of the following:

23 (A) Has not operated a farm or ranch.

24 (B) Has operated a farm or ranch for not more than five years.

25 (3) Is a veteran, as defined in Section 101 of Title 38 of the
26 United States Code, who first obtained status as a veteran during
27 the most recent five-year period.

28 (4) Is a beginning veteran farmer or rancher, as that term is
29 used in Section 1502 of Title 7 of the United States Code.

30 ~~93540.~~

31 93600. Projects funded pursuant to this chapter shall be
32 consistent with the policies and guidelines established by the
33 Department of Food and Agriculture and the Natural and Working
34 Lands Climate Smart Strategy, if applicable.

35 CHAPTER 8. PARK CREATION AND OUTDOOR ACCESS

36
37
38 94000. The sum of ~~five hundred million dollars (\$500,000,000)~~
39 *seven hundred million dollars (\$700,000,000)* shall be available,
40 upon appropriation by the Legislature, for the creation and

1 protection of parks, outdoor access, and educational institutions.
2 institutions and facilities.

3 94010. (a) Of the funds made available by Section 94000, two
4 hundred million dollars (\$200,000,000) shall be available, upon
5 appropriation by the Legislature, to the Department of Parks and
6 Recreation for the creation, expansion, and renovation of safe
7 neighborhood parks in park-poor neighborhoods in accordance
8 with the Statewide Park Development and Community
9 Revitalization Act of 2008's competitive grant program described
10 in Chapter 3.3 (commencing with Section 5640) of Division 5.

11 (b) When administering grants pursuant to subdivision (a),
12 priority shall be given to projects that provide multiple benefits,
13 including, but not limited to, mitigating impacts of extreme heat,
14 sea level rise, or flooding, enhancing stormwater capture,
15 improving air quality, supporting local biodiversity, and other
16 environmental benefits.

17 (c) Of the amount available pursuant to subdivision (a), not less
18 than 10 percent shall be available for the rehabilitation,
19 repurposing, or substantial improvement of existing park
20 infrastructure that will lead to increased use and enhanced user
21 experiences or increase access, including, but not limited to, for
22 individuals with disabilities, as defined by the federal Americans
23 with Disabilities Act of 1990 (42 U.S.C. Sec. 12101 et seq.).

24 ~~94010.~~

25 94020. Of the funds made available by Section 94000, ~~four~~
26 ~~hundred million dollars (\$400,000,000)~~ two hundred million dollars
27 (\$200,000,000) shall be available, upon appropriation by the
28 Legislature, to the Natural Resources Agency and its departments,
29 boards, and conservancies for the reduction of climate impacts on
30 disadvantaged communities and vulnerable populations and the
31 creation, protection, and expansion of outdoor recreation
32 opportunities. Eligible projects include, but are not limited to, any
33 of the following:

34 (a) Improvements to city parks, county parks, regional parks,
35 and open-space lands to preserve infrastructure, including natural
36 infrastructure, to promote resilience and adaptation or the
37 promotion and enhancement of natural resources and water
38 conservation and efficiencies on local and regional public park
39 lands and open-space lands.

~~(b) The creation and expansion of safe neighborhood parks in park-poor neighborhoods in accordance with the Statewide Park Development and Community Revitalization Act of 2008's competitive grant program described in Chapter 3.3 (commencing with Section 5640) of Division 5.~~

(b) Funding for park-poor communities experiencing a significant loss of parks or open and recreation space resulting from climate-related infrastructure projects.

~~(c) Multiple-benefit~~ *Multiple-benefit* projects that reduce risks of exposure to toxic or hazardous materials that may increase as a result of wildfires, flooding, sea level rise, or reduced water flows to polluted bodies of water.

~~(d) Grants consistent with the California Cultural and Historical Endowment Act, established pursuant to Chapter 13 (commencing with Section 20050) of Part 11 of Division 1 of Title 1 of the Education Code, for projects that protect California's cultural and historic resources from climate impacts or inform the public about resiliency to climate change.~~

~~(e)~~

(d) Improved public access, including for individuals with disabilities, as defined by the federal Americans with Disabilities Act of 1990 (42 U.S.C. Sec. 12101 et seq.), and outdoor recreation at state parks, city parks, county parks, regional parks, and open-space preserves.

(e) Protection, restoration, and enhancement of the natural resource values of the state park system and projects to expand public access for disadvantaged communities, including, but not limited to, the expansion of lower cost coastal accommodation project development.

(f) Coastal public access infrastructure for disadvantaged communities, including, but not limited to, trails, parking areas, restrooms, bicycle lanes, and transportation improvements, including projects consistent with a public access program pursuant to Section 30610.81.

(g) Projects for the creation and improvement of local parks to correct historic underinvestment in communities identified by the department as park deficient for active recreational infrastructure, including aquatic centers, to encourage youth health, fitness, and recreational pursuits.

94020.

94030. Of the funds made available by Section 94000, one hundred million dollars (\$100,000,000) shall be available, upon appropriation by the Legislature, to the ~~Department of Parks and Recreation~~ *Natural Resources Agency and its departments, boards, and conservancies* for the protection, restoration, and enhancement of the natural resource values of the state park system and ~~projects to expand public access for disadvantaged communities, including, but not limited to, the expansion of lower cost coastal accommodation project development.~~ *for projects to expand recreational opportunities and public access to state and public park nonmotorized trails. Projects may include enhancing and expanding existing trails and creating new trails.*

94040. Of the funds made available by Section 94000, one hundred seventy-five million dollars (\$175,000,000) shall be available, upon appropriation by the Legislature, to the Department of Parks and Recreation to implement projects to address the department's backlog of deferred maintenance.

94050. Of the funds made available by Section 94000, twenty-five million dollars (\$25,000,000) shall be available, upon appropriation by the Legislature, to the Natural Resources Agency for grants to nature and climate education and research facilities, nonprofit organizations and public institutions, natural history museums, California zoos and aquariums accredited by the Association of Zoos and Aquariums, and geologic heritage sites that serve diverse populations. Grants may be used for buildings, equipment, structures, and exhibit galleries that present collections to promote climate, biodiversity, and cultural literacy. Projects may support species recovery and biodiversity protection in order to advance the state's 30x30 conservation goal.

94030. ~~(a) At least 10 percent of the funds available pursuant to this chapter shall be allocated for grants that provide outreach and technical assistance that directly benefit disadvantaged communities and vulnerable populations. An eligible applicant is a nonprofit organization, technical assistance provider, or tribe.~~

~~(b) Projects~~

94060. Projects funded pursuant to this chapter shall be consistent with the policies and guidelines established by the Natural Resources ~~Agency and Agency,~~ the Outdoors for All

1 ~~Strategy, strategy, and the Pathways to 30x30 strategy, if~~
2 ~~applicable.~~

3
4 CHAPTER 9. ~~CLEAN ENERGY~~ AIR
5

6 94500. The sum of ~~two billion dollars (\$2,000,000,000)~~ *eight*
7 *hundred fifty million dollars (\$850,000,000)* shall be available,
8 upon appropriation by the Legislature, for clean energy projects.

9 ~~94510. Of the funds made available by Section 94500, five~~
10 ~~hundred million dollars (\$500,000,000) shall be available, upon~~
11 ~~appropriation by the Legislature, to support the planning and~~
12 ~~development of new or expanded high-voltage electrical~~
13 ~~transmission lines that are necessary to meet the state's clean~~
14 ~~energy goals and have been identified by the Independent System~~
15 ~~Operator as required to achieve the state's policies identified in~~
16 ~~Section 454.53 of the Public Utilities Code.~~

17 94520. ~~Of the funds made available by Section 94500, five~~
18 ~~hundred million dollars (\$500,000,000) shall be available, upon~~
19 ~~appropriation by the Legislature, to the State Energy Resources~~
20 ~~Conservation and Development Commission, in coordination with~~
21 ~~the State Air Resources Board, for grants to assist in obtaining, or~~
22 ~~as a match for, federal grants related to regional hubs in the federal~~
23 ~~Infrastructure Investment and Jobs Act (Public Law 117-58) and~~
24 ~~federal Inflation Reduction Act of 2022 (Public Law 117-169).~~

25 94530. ~~Of the funds made available by Section 94500, five~~
26 ~~hundred million dollars (\$500,000,000) shall be available, upon~~
27 ~~appropriation by the Legislature, to the State Energy Resources~~
28 ~~Conservation and Development Commission for zero-emission~~
29 ~~vehicle charging infrastructure.~~

30 94540. ~~Of the funds made available by Section 94500, five~~
31 ~~hundred million dollars (\$500,000,000) shall be available, upon~~
32 ~~appropriation by the Legislature, to the State Energy Resources~~
33 ~~Conservation and Development Commission for grants to support~~
34 ~~the Long-Duration Energy Storage Program.~~

35 94510. (a) *The proportion of any asset funded pursuant to this*
36 *section or Section 94520 or 94530 shall be funded without return*
37 *on equity for the lifetime of the proportion of that asset that would*
38 *have otherwise been borne by ratepayers.*

1 (b) The proportion of any projects funded pursuant to this
2 section or Section 94520 or 94530 shall be excluded from the
3 ratebase, and no costs may be collected from ratepayers.

4 (c) It is the intent of the Legislature that bond moneys shall not
5 be used for shareholder incentives or profits for shareholders of
6 private corporations.

7 94520. (a) Of the funds made available by Section 94500,
8 three hundred twenty-five million dollars (\$325,000,000) shall be
9 available, upon appropriation by the Legislature, to the California
10 Infrastructure and Economic Development Bank, the State Energy
11 Resources Conservation and Development Commission, or any
12 other entity chosen by the Legislature, upon appropriation by the
13 Legislature, for the public financing of clean energy transmission
14 projects that are necessary to meet the state's clean energy goals
15 to reduce or offset ratepayer costs associated with the public
16 benefits of transmission projects.

17 (b) Preference may be given to projects under this section that
18 provide multiple benefits, including, but not limited to, reducing
19 the risk of wildfire, reducing reliance on fossil fuel plants in
20 disadvantaged communities, and reducing rate pressure, including
21 reconductoring and other grid-enhancing technologies.

22 94530. Of the funds made available by Section 94500, fifty
23 million dollars (\$50,000,000) shall be available, upon
24 appropriation by the Legislature, to the State Energy Resources
25 Conservation and Development Commission for grants or loans
26 to support the Long-Duration Energy Storage Program. Eligible
27 uses may also include zero-emissions distributed energy backup
28 assets, virtual power plants, and demand side grid support.

29 94540. (a) Of the funds made available by Section 94500, four
30 hundred seventy-five million dollars (\$475,000,000) shall be
31 available, upon appropriation by the Legislature, to the State
32 Energy Resources Conservation and Development Commission to
33 support any of the following activities related to the development
34 of offshore wind generation:

35 (1) Construction of publicly owned port facilities for
36 manufacturing, assembly, staging, and integration of entitlements
37 and components for offshore wind generation.

38 (2) Expansion and improvement of public port infrastructure
39 to accommodate vessels involved in the installation, maintenance,
40 and operation of offshore wind generation.

1 (3) *Upgrades to port facilities.*

2 (b) *The commission may expend moneys made available*
3 *pursuant to subdivision (a) consistent with the strategic plan*
4 *developed pursuant to Section 25991.*

5 (c) *The commission shall prioritize projects that can show*
6 *matching funds or that are located at staging and integration ports*
7 *that have released a notice of preparation pursuant to the*
8 *California Environmental Quality Act process on or before*
9 *February 29, 2024.*

10
11 CHAPTER 10. FISCAL PROVISIONS
12

13 95000. (a) Bonds in the total amount of ~~fifteen billion five~~
14 ~~hundred million dollars (\$15,500,000,000);~~ *ten billion dollars*
15 *(\$10,000,000,000)*, not including the amount of any refunding
16 bonds issued in accordance with Section 95012, may be issued
17 and sold for carrying out the purposes expressed in this division
18 and to reimburse the General Obligation Bond Expense Revolving
19 Fund pursuant to Section 16724.5 of the Government Code. The
20 bonds, when sold, issued, and delivered, shall be and constitute a
21 valid and binding obligation of the State of California, and the full
22 faith and credit of the State of California is hereby pledged for the
23 punctual payment of both the principal of, and interest on, the
24 bonds as the principal and interest become due and payable.

25 (b) The Treasurer shall cause the issuance and sell the bonds
26 authorized by the committee pursuant to subdivision (a) in the
27 amount determined by the committee to be necessary or desirable
28 pursuant to Section 95003. The bonds shall be issued and sold
29 upon the terms and conditions specified in a resolution to be
30 adopted by the committee pursuant to Section 16731 of the
31 Government Code.

32 95001. The bonds authorized by this division shall be prepared,
33 executed, issued, sold, paid, and redeemed as provided in the State
34 General Obligation Bond Law (~~Chapter 4 (commencing with~~
35 ~~Section 16720) of Part 3 of Division 4 of Title 2 of the Government~~
36 ~~Code), as amended from time to time,~~ *Law*, and all of the
37 provisions of that law, except subdivisions (a) and (b) of Section
38 16727 of the Government Code, apply to the bonds and to this
39 division and are hereby incorporated in this division as though set
40 forth in full in this division.

95002. (a) Solely for the purpose of authorizing the issuance and sale, pursuant to the State General Obligation Bond Law ~~(Chapter 4 (commencing with Section 16720) of Part 3 of Division 4 of Title 2 of the Government Code);~~ Law, of the bonds authorized by this division, the ~~Drought, Flood, and Water Resilience, Wildfire and Forest Resilience, Coastal Resilience, Extreme Heat Mitigation, Biodiversity and Nature-Based Climate Solutions, Climate Smart Agriculture, Park Creation and Outdoor Access, and Clean Energy~~ *Safe Drinking Water, Wildfire Prevention, Drought Preparedness, and Clean Air* Bond Finance Committee is hereby created. For purposes of this division, the ~~Drought, Flood, and Water Resilience, Wildfire and Forest Resilience, Coastal Resilience, Extreme Heat Mitigation, Biodiversity and Nature-Based Climate Solutions, Climate Smart Agriculture, Park Creation and Outdoor Access, and Clean Energy~~ *Safe Drinking Water, Wildfire Prevention, Drought Preparedness, and Clean Air* Bond Finance Committee is the “committee,” as that term is used in the State General Obligation Bond Law.

(b) The committee consists of the Director of Finance, the Treasurer, the Controller, ~~and the Secretary of the Natural Resources Agency.~~ *Agency, and the Secretary for Environmental Protection.* Notwithstanding any other law, any member may designate a representative to act as that member in that member’s place for all purposes, as though the member were personally present.

(c) The Treasurer shall serve as the chairperson of the committee.

(d) A majority of the committee may act for the committee.

95003. The committee shall by resolution determine whether or not it is necessary or desirable to issue and sell bonds authorized by this division in order to carry out the actions specified in this division and, if so, the amount of bonds to be issued and sold. Successive issues of bonds may be authorized and sold to carry out those actions progressively, and it is not necessary that all of the bonds authorized to be issued be sold at any one time.

95004. For purposes of the State General Obligation Bond Law ~~(Chapter 4 (commencing with Section 16720) of Part 3 of Division 4 of Title 2 of the Government Code);~~ Law, “board,” as defined in Section 16722 of the Government Code, means the Secretary of the Natural Resources Agency.

1 95005. There shall be collected each year and in the same
2 manner and at the same time as other state revenue is collected,
3 in addition to the ordinary revenues of the state, a sum in an amount
4 required to pay the principal of, and interest on, the bonds
5 becoming due in that year. It is the duty of all officers charged by
6 law with any duty regarding the collection of the revenue to do
7 and perform each and every act that is necessary to collect that
8 additional sum.

9 95006. Notwithstanding Section 13340 of the Government
10 Code, there is hereby continuously appropriated from the General
11 Fund in the State Treasury, for the purposes of this division, and
12 without regard to fiscal years, an amount that will equal the total
13 of the following:

14 (a) The sum annually necessary to pay the principal of, and
15 interest on, bonds issued and sold pursuant to this division, as the
16 principal and interest become due and payable.

17 (b) The sum that is necessary to carry out Section 95009.

18 95007. The board may request the Pooled Money Investment
19 Board to make a loan from the Pooled Money Investment Account
20 or any other form of interim financing in accordance with Section
21 16312 of the Government Code, for the purpose of carrying out
22 this division. The amount of the request shall not exceed the
23 amount of the unsold bonds that the committee has, by resolution,
24 authorized to be sold for the purpose of carrying out this division,
25 excluding any refunding bonds authorized pursuant to Section
26 95012, less any amount loaned and not yet repaid pursuant to this
27 section and any amount withdrawn from the General Fund pursuant
28 to Section 95009 and not yet returned to the General Fund. The
29 board shall execute those documents required by the Pooled Money
30 Investment Board to obtain and repay the loan. Any amounts
31 loaned shall be deposited in the fund to be allocated in accordance
32 with this division.

33 95008. Notwithstanding any other provision of this division,
34 or of the State General Obligation Bond ~~Law (Chapter 4~~
35 ~~(commencing with Section 16720) of Part 3 of Division 4 of Title~~
36 ~~2 of the Government Code)~~, *Law*, if the Treasurer sells bonds
37 pursuant to this chapter that include a bond counsel opinion to the
38 effect that the interest on the bonds is excluded from gross income
39 for federal tax purposes under designated conditions or is otherwise
40 entitled to any federal tax advantage, the Treasurer may maintain

1 separate accounts for the bond proceeds invested and for the
2 investment earnings on those proceeds and may use or direct the
3 use of those proceeds or earnings to pay any rebate, penalty, or
4 other payment required under federal law or take any other action
5 with respect to the investment and use of those bond proceeds, as
6 may be required or desirable under federal law in order to maintain
7 the tax-exempt status of those bonds and to obtain any other
8 advantage under federal law on behalf of the funds of this state.

9 95009. For purposes of carrying out this division, the Director
10 of Finance may authorize the withdrawal from the General Fund
11 of an amount or amounts not to exceed the amount of the unsold
12 bonds that have been authorized by the committee to be sold for
13 the purpose of carrying out this division, excluding refunding
14 bonds authorized pursuant to Section 95012, less any amount
15 loaned pursuant to Section 95007 and not yet repaid and any
16 amount withdrawn from the General Fund pursuant to this section
17 and not yet returned to the General Fund. Any amounts withdrawn
18 shall be deposited in the fund to be allocated in accordance with
19 this division. Any moneys made available under this section shall
20 be returned to the General Fund, with interest at the rate earned
21 by the moneys in the Pooled Money Investment Account, from
22 proceeds received from the sale of bonds for the purpose of
23 carrying out this division.

24 95010. All moneys deposited in the fund that are derived from
25 premiums and accrued interest on bonds sold pursuant to this
26 division shall be reserved in the fund and shall be available for
27 transfer to the General Fund as a credit to expenditures for bond
28 interest, except that amounts derived from premiums may be
29 reserved and used to pay costs of bond issuance before any transfer
30 to the General Fund.

31 95011. Pursuant to the State General Obligation Bond ~~Law~~
32 ~~(Chapter 4 (commencing with Section 16720) of Part 3 of Division~~
33 ~~4 of Title 2 of the Government Code)~~, *Law*, the cost of bond
34 issuance shall be paid or reimbursed out of the bond proceeds,
35 including premiums, if any. To the extent the cost of bond issuance
36 is not paid from premiums received from the sale of bonds, these
37 costs shall be allocated proportionally to each program funded
38 through this division by the applicable bond sale.

39 95012. The bonds issued and sold pursuant to this division
40 may be refunded in accordance with Article 6 (commencing with

1 Section 16780) of Chapter 4 of Part 3 of Division 4 of Title 2 of
2 the Government Code, which is a part of the State General
3 Obligation Bond Law, as amended. Law. Approval by the voters
4 of the state for the issuance of the bonds under this division shall
5 include approval of the issuance, sale, or exchange of any bonds
6 issued to refund any bonds originally issued under this division or
7 any previously issued refunding bonds. Any bond refunded with
8 the proceeds of a refunding bond as authorized by this section may
9 be legally defeased to the extent permitted by law in the manner
10 and to the extent set forth in the resolution, as amended from time
11 to time, authorizing that refunded bond.

12 95013. Notwithstanding Section 16727 of the Government
13 Code, funds provided pursuant to this division may be used for
14 grants and loans to nonprofit organizations to repay financing
15 described in Section 22064 of the Financial Code related to projects
16 that are consistent with the purpose of the respective provisions
17 of this division.

18 95014. The proceeds from the sale of bonds authorized by this
19 division are not “proceeds of taxes” as that term is used in Article
20 XIII B of the California Constitution, and the disbursement of
21 these proceeds is not subject to the limitations imposed by that
22 article.

23 ~~95015. Bonds issued under this division shall, whenever~~
24 ~~practical, be aligned with generally recognized principles and best~~
25 ~~practice guidelines for financing drought, flood, and water~~
26 ~~resilience, wildfire and forest resilience, coastal resilience, extreme~~
27 ~~heat mitigation, biodiversity and nature-based climate solutions,~~
28 ~~climate smart agriculture, park creation and outdoor access, and~~
29 ~~clean energy projects.~~

30 *95015. Bonds issued under this division may, whenever*
31 *practical, be aligned with generally recognized principles and best*
32 *practices guidelines for financing climate mitigation, adaptation,*
33 *or resilience projects.*

34 SEC. 3. Section 2 of this act shall take effect upon the approval
35 by the voters of the ~~Drought, Flood, and Water Resilience, Wildfire~~
36 ~~and Forest Resilience, Coastal Resilience, Extreme Heat Mitigation,~~
37 ~~Biodiversity and Nature-Based Climate Solutions, Climate Smart~~
38 ~~Agriculture, Park Creation and Outdoor Access, and Clean Energy~~
39 *Safe Drinking Water, Wildfire Prevention, Drought Preparedness,*

1 *and Clean Air Bond Act of 2024, as set forth in Section 2 of this*
2 *act.*

3 ~~SEC. 4. (a) Notwithstanding Sections 9040, 9043, 9044, 9061,~~
4 ~~and 9082 of the Elections Code, or any other law, Section 2 of this~~
5 ~~act shall be submitted by the Secretary of State to the voters at the~~
6 ~~March 5, 2024, statewide primary election.~~

7 ~~(b) The Secretary of State shall include in the ballot pamphlets~~
8 ~~mailed pursuant to Section 9094 of the Elections Code the~~
9 ~~information specified in Section 9084 of the Elections Code~~
10 ~~regarding Section 2 of this act.~~

11 ~~SEC. 5.~~

12 ~~SEC. 4.~~ The provisions of this act are severable. If any
13 provision of this act or its application is held invalid, that invalidity
14 shall not affect other provisions or applications that can be given
15 effect without the invalid provision or application.

16 ~~SEC. 6. This act shall become operative only if Senate Bill~~
17 ~~638 of the 2023–24 Regular Session is enacted and takes effect~~
18 ~~on or before January 1, 2024.~~

19 *SEC. 5. This act is an urgency statute necessary for the*
20 *immediate preservation of the public peace, health, or safety within*
21 *the meaning of Article IV of the California Constitution and shall*
22 *go into immediate effect. The facts constituting the necessity are:*

23 *In order to place the Safe Drinking Water, Wildfire Prevention,*
24 *Drought Preparedness, and Clean Air Bond Act of 2024 on the*
25 *November 5, 2024, statewide general election ballot and to*
26 *expedite the implementation of the projects supported by that bond*
27 *act for the protection of public health, safety, and the environment,*
28 *it is necessary for this measure to take effect immediately.*